SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER: SEE SCHEDULE

2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			80GSFC26R0011	

7. FOR SOLICITATION INFORMATION CALL:
- a. NAME: Mercadante, Alisha M. (GSFC-1760)Contract Specialist
- b. TELEPHONE NUMBER *(No collect calls)*:

8. OFFER DUE DATE/ LOCAL TIME: 4/10/2026 2:00 PM ET

9. ISSUED BY — CODE: 80GSFC

NASA GODDARD SPACE FLIGHT CENTER
8800 Greenbelt Road
GREENBELT, MD 20771
United States
Mercadante, Alisha M. (GSFC-1760), Contract Specialist

10. THIS ACQUISITION IS [X] UNRESTRICTED OR [ ] SET ASIDE: % FOR:
- [ ] SMALL BUSINESS
- [ ] HUBZONE SMALL BUSINESS
- [ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
- [ ] WOMEN-OWNED SMALL BUSINESS (WOSB)
- [ ] ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
- [ ] 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 517410

SIZE STANDARD:

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED
[ ] SEE SCHEDULE

12. DISCOUNT TERMS

13a. [ ] THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)

13b. RATING

14. METHOD OF SOLICITATION
[ ] REQUEST FOR QUOTE (RFQ) [ ] INVITATION FOR BID (IFB) [X] REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO — CODE:
SEE SCHEDULE

16. ADMINISTERED BY — CODE:

17a. CONTRACTOR/ OFFEROR — CODE: — FACILITY CODE:

TELEPHONE NUMBER

18a. PAYMENT WILL BE MADE BY — CODE:

[ ] 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED [ ] SEE ADDENDUM

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE				
	DRAFT				
	(Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT *(For Government Use Only)*: See Schedule

[X] 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR AND 52.212-5 ARE ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[ ] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ______ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

[ ] 29. AWARD OF CONTRACT: REFERENCE ______________ OFFER DATED ______________. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*	
30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED

Item	Supplies/Service	Dates	Qty	Unit	Unit Price	Amount
0001	CLIN 1 : CORE - Requirement (Mars Telecommunications Network (MTN) Product Service Code: DG10 Severability: Yes Firm Fixed Price	Delivery Schedule: Award through TBP - MTN Delivery of Pre-ship review Spacecraft data package as defined in DRD SE-05. TBP - NLT 12/31/2028	1.0	Job		
0002	CLIN 2: IDIQ - Mars Telecommunications Network (MTN) to support: Special Studies as required per Task Order. NTE - $10M Product Service Code: DG10 Severability: No Time and Materials	Period of Performance From Award through MTN Delivery and upon Exercise of CLIN 3 Launch through commissioning NLT- 12/31/2030	1.0	Job		
0003	CLIN 3: Option 1 - Mars Telecommunications Network – Transportation, integration with launch vehicle, launch, transit, relay commissioning at Mars. Product Service Code: DG10 Severability: No Firm Fixed Price	Delivery Schedule: Upon Exercise of the Option + Launch through commissioning TBP - NLT 12/31/2030	1.0	Job		
0004	CLIN 4: Option 1A - Mars Telecommunications Network – Mission Operations	Period of Performance From Relay commissioning plus 12 Months	1.0	Job		

	Product Service Code: DG10 Severability: Yes Firm Fixed Price					
0005	CLIN 5: Option 2 - Mars Telecommunications Network - Mission Operations Product Service Code: DG10 Severability: Yes Firm Fixed Price	Period of Performance From End of Option 1A plus 12 Months	1.0	Job		
0006	CLIN 6: Option 3 – Mars Telecommunications Network - Mission Operations Product Service Code: DG10 Severability: Yes Firm Fixed Price	Period of Performance From End of Option 2 plus 12 months	1.0	Job		
0007	CLIN 7: Option 4 - Mars Telecommunications Network - Mission Operations Product Service Code: DG10 Severability: Yes Firm Fixed Price	Period of Performance From End of Option 3 plus 12 Months	1.0	Job		
0008	CLIN 8: Option 5 - Mars Telecommunications Network – Mission Operations Product Service Code: DG10 Severability: Yes Firm Fixed Price	Period of Performance From End of Option 4 plus 12 Months	1.0	Job		

1852.216-78 Firm-Fixed-Price (DEC 2025) (Deviation) – This clause applies exclusively to the Fixed-Price CLINs, as authorized and defined in GSFC 52.211-91 SCOPE OF WORK.

The total firm-fixed-price of this contract is $_*TBP*_ .

(End of clause)

Contractor Negotiated Milestone Payment Schedule

a) The Contract incorporates FAR 52.232-29, "Terms for Financing of Purchases of Commercial Products and Commercial Services.

Table 1 – MTN Delivery (CLIN 1 - Core Requirement)

Milestone Event/ID	Description of Deliverable	Due Date	Interim Payment Amount (% of Total Price)	Interim Payment Dollar Amount
TBP	TBP	TBP	TBP	TBP
TBP	TBP	TBP	TBP	TBP
TBP	TBP	TBP	TBP	TBP
TBP	TBP	TBP	TBP	TBP
TBP	TBP	TBP	TBP	TBP
TBP	TBP	TBP	TBP	TBP
TBP	TBP	TBP	TBP	TBP
TBP	TBP	TBP	TBP	TBP
TBP	TBP	TBP	TBP	TBP
*TBP	TBP	TBP	TBP	TBP

Table 2 – Launch through Commissioning (CLIN 3 – Transportation, integration with launch vehicle, launch, transit, relay commissioning at Mars.)

Milestone Event/ID	Description of Deliverable	Due Date	Interim Payment Amount (% of Total Price)	Interim Payment Dollar Amount
TBP	TBP	TBP	TBP	TBP
TBP	TBP	TBP	TBP	TBP
TBP	TBP	TBP	TBP	TBP
TBP	TBP	TBP	TBP	TBP
*TBP	TBP	TBP	TBP	TBP

*Note: This represents the Final payment for this CLIN.

b) In addition to standard financing provisions, the Contractor may request commercial interim payments tied to milestone events as follows:

c) Consistent with FAR 52.232-29 and FAR 32.206, upon Government acceptance of each milestone deliverable, the Contractor may request payment and may submit requests for payment not more frequently than monthly. Payment will be made within 30 days of a proper request and milestone interim payments will be liquidated by final delivery payments on a line-item basis. The final milestone payment shall not be less than 10% of the total contract CLIN 1 price.

d) The Contractor shall not be entitled to payment of a request for milestones payment prior to successful accomplishment and acceptance by the Government of the milestone event. The Government may modify milestone criteria, dates, or payment amounts by bilateral modification, so long as objective verification remains intact.

e) The Contracting Officer shall determine whether the milestone event or performance criterion for which payment is requested has been successfully accomplished and accepted by the Government in accordance with the terms of the contract. The Contracting Officer may, at any time, require the Contractor to substantiate the successful performance of any event or performance criterion which has been or is represented as being payable.
The Government's liability is limited to the payments due under FAR 52.212-4 termination provisions.

f) The Contractor must furnish and maintain security (e.g., irrevocable letter of credit or other acceptable form). The Government may suspend milestone payments if security becomes inadequate and require repayment of unliquidated amounts.

g) Receipt of milestone payments does not excuse any Contract performance obligations, nor waive any Government remedies.

h) Payment requests must include:

- Completed SF-1081 or equivalent.
- Reference to the accepted milestone deliverable, including artifact or acceptance letter.
- Certification that deliverable meets contract requirements and financing conditions under FAR 52.232-29.

(End of Text)

Schedule Incentive (MTN Delivery)

The Government considers schedule to be critical to mission success. Timely delivery of the MTN is essential, and any delay could significantly impact program cost, launch readiness, and downstream mission activities. The Contractor's performance against the schedule is therefore a key metric factor for this contract.

a) The Contractor proposed a schedule Incentive in the amount of **$____TBP____** which will be paid if the Contractor successfully completes the **(vendor-defined milestone associated with readiness to ship)** on or before the contract delivery date and ALL contractual requirements are met for **Acceptance.**

b) If the MTN is delivered late, or if any contractual requirements are not met at Final Acceptance, the incentive will not be paid.

c) If a delay is caused solely by the Government, the Contracting Officer will adjust the delivery date for incentive purposes.

d) No additional incentive is available for early delivery.

(End of Text)

Schedule Incentive (Commissioning)

The Government considers schedule to be critical to mission success. Timely delivery of the MTN is essential, and any delay could significantly impact program cost, launch readiness, and downstream mission activities. The Contractor's performance against the schedule is therefore a key metric factor for this contract.

a) The Contractor proposed a schedule Incentive in the amount of **$_________TBP___** which will be paid if the Contractor successfully **achieves its mission orbit and completes the Relay Commissioning activities at Mars** on or before the contract delivery date and ALL contractual requirements are met for **Acceptance.**

b) If the MTN is delivered late, or if any contractual requirements are not met at Acceptance, the incentive will not be paid.

c) If a delay is caused solely by the Government, the Contracting Officer will adjust the delivery date for incentive purposes.

d). No additional incentive is available for early delivery.

(End of Text)

Performance Incentive (Mission Operations)

During Phase-E, the Government considers yearly performance thresholds to be **critical** to successful mission execution. Consistent achievement of these requirements directly affects mission readiness, integration planning, and overall program risk. The Government places high importance on meeting these yearly thresholds as defined in the contract.

a) The Contractor proposed a performance incentive in the amount of $ **TBP** which will be paid if the Contractor meets all yearly threshold performance requirements identified in **Attachment B - MTN Objectives and Requirements** document for the performance period for which the options are exercised.

b) If the Contractor does not meet all required performance thresholds for a given year, the incentive for that year will not be paid.

c) If the Government is the sole cause of the Contractor's inability to meet a threshold requirement, the Contracting Officer will adjust the affected requirement or performance period for incentive purposes.

d) No additional incentive is available for early delivery.

(End of Text)

GSFC Clauses Incorporated by Full Text

GSFC 52.211-90 Supplies and/or Services To Be Provided. (AUG 2025)

The Contractor shall provide all resources (except as may be expressly stated in the *contract* as furnished by the Government) necessary to deliver and/or perform the items below in accordance with the Statement of Objectives (SOO), incorporated as Attachment A, and Task Orders issued hereunder.

Item	Description	Reference	Schedule	Delivery Method /Address
1	Performance Work Statement (PWS)	As Defined in Attachment A, PWS	As Defined in Attachment A, PWS	As Defined in Attachment A, PWS
2	Services and Deliverables in accordance with Task Orders Issued and the PWS	As Defined in Individual Task Orders Issued	As Specified in Individual Task Orders Issued	As Specified in Individual Task Orders Issued
3	Task Plans	NFS 1852.216-80	As Required in Clause NFS 1852.216-80	E-mail CO, COR, RA
4	Data Requirements Deliverables (DRD)s with Attachment F	As Defined in Attachment F, DRDs	As Defined in Attachment F, DRDs	As Defined in Attachment F, DRDs
5	CDRLS – Non-Technical (DRD)s with Attachment H	As Defined in Attachment H, DRDs	As Defined in Attachment H, DRDs	As Defined in Attachment H, DRDs
6	Financial Report of NASA Property in the Custody of Contractors (NF 1018)	NFS 1852.245-73	Annual Report by October 15th and Final Report	NF 1018 Electronic Submission System (NESS)

7	Supplemental Financial Report of NASA Property in the Custody of Contractors	GSFC 52.245-99	Monthly By the 21st of each Month and Final Report	Contractor-Held Asset Tracking System (CHATS) at https://chats.nasa.gov
8	Small Business Subcontracting Plan Reporting	GSFC 52.219-90 NFS 1852.219-75	ISR–Semi-Annual (April 30th and October 30th) and Final SSR–Annual (October 30th)	Electronic Format/ Electronic Subcontract Reporting System http://www.sam .gov
9	Organizational Conflicts of Interest (OCI) Avoidance Plan	NFS 1852.237-72 Attachment K	30 Days after Contract Effective Date	Electronic Format /CO
10	Subcontract Notification	FAR 52.244-2	30 Days Prior to Subcontract Award Date	Electronic or Hard Copy Format/CO
11	Security Requirements for Unclassified IT Resources: a. Information System Security Plan b. Contractor's IT Security POC c. Non-Federal System Certification	NFS 1852.240-76 Deviation Security Requirements for Unclassified IT Resources DRD, Attachment J	a. At start of the contract, updated as required. b. At start of the contract, updated as required. c. Prior to any transfer of NASA non-public information to the contractor, submitted annually.	Electronically to CO, COR, and NASA Security Officer (ISSO) or NASA Information Owner

12	Cyber Supply Chain Risk Management (C-SCRM) Plan	NFS 1852.240-76 IT DRD, Attachment H	Prior to any transfer of NASA non-public information to the contractor, updated as required. As specified by 1852.240-76 (Deviation) and Attachment H	ICT/C-SCRM Service Element Lead

NOTE: Unless otherwise specified, "day" means "calendar day".

(End of clause)

SUPPLEMENTAL TASK ORDERING PROCEDURES

Note: This clause applies exclusively to Time & Materials Contract Line Item Number (CLIN) as authorized and defined in contract clause GSFC 52.211-91 SCOPE OF WORK.

When the Government issues a request for a "task plan" to the Contractor in accordance with the Clause entitled "Task Ordering Procedure" of this contract, the Contractor shall prepare its estimate required to perform the task order requirements. The Contractor shall use only those appropriate labor categories and loaded labor rates as well as other specified rates, which may be less than but shall not exceed the rates found in **Attachment E**, to calculate the proposed price for all task orders issued in accordance with the "Task Ordering Procedure" clause of this contract.

(End of text)

GSFC 52.217-91 Option For Increased Quantity. (SEP 2013)

In accordance with the Option for Increased Quantity--Separately Priced Line Item clause of this contract, the Government may increase the quantity of items as follows:

Option	Description	Qty	Delivery Schedule/ Period of Performance	Firm Fixed Price Amount
1	CLIN 3: Mars Telecommunications Network – Transportation, integration with launch vehicle, launch, transit, relay commissioning at Mars.	1 JB	Delivery Schedule: Upon Exercise of the Option + Launch through commissioning TBP – NLT 12/31/2030	$TBP
1A	CLIN 4: Mars Telecommunications Network – Mission Operations	12 Months	Period of Performance: From Relay commissioning plus 12 months	$TBP
2	CLIN 5: Mars Telecommunications Network – Mission Operations	12 Months	Period of Performance: From End of Option 1A plus 12 Months	$TBP

3	CLIN 6: Mars Telecommunications Network – Mission Operations	12 Months	Period of Performance: From End of Option 2 plus 12 Months	$TBP

4	CLIN 7: Mars Telecommunications Network – Mission Operations	12 Months	Period of Performance: From End of Option 3 plus 12 Months	$TBP
5	CLIN 8: Mars Telecommunications Network – Mission Operations	12 Months	Period of Performance: From End of Option 4 plus 12 Months	$TBP

This option may be exercised by the Contracting Officer by written notice to the Contractor within the time period specified in FAR clause 52.217-7, "Option for Increased Quantity--Separately Priced Line Item" of this contract.

(End of clause)

Description/Specifications/Statement of Work

GSFC 52.211-91 SCOPE OF WORK. (FEB 2016)

The Contractor shall provide the personnel, materials, and facilities, except as otherwise specified in this contract, necessary to perform the work and to furnish the items specified in clause 52.211-90 SUPPLIES AND/OR SERVICES TO BE PROVIDED in accordance with all attachment listed in clause GSFC 52.211-101 LIST OF ATTACHMENTS, task orders, and all other referenced requirements.

The Contractor shall perform and provide all the resources necessary, except otherwise specified in this contract, necessary to complete all CORE and Optional Contract Line Item Number (CLIN) when exercised.

(End of clause)

GSFC 52.227-90 Limited Rights Data or Restricted Computer Software. (MAR 2008)

In accordance with the delivery requirements of this contract, all software data rights shall be delivered in accordance with the Rights in Data – General clause, specified elsewhere in this contract, except for the following:

NONE

(End of clause)

Packaging and Marking

NFS Clauses Incorporated by Full Text

1852.245-74 Identification and Marking of Government Equipment (DEC 2025) (Deviation)

(a) The Contractor must identify all equipment to be delivered to the Government using NASA Technical Handbook (NASA–HDBK) 6003, Application of Data Matrix Identification Symbols to Aerospace Parts Using Direct Part Marking Methods/Techniques, and NASA Standard (NASA–STD) 6002, Applying Data Matrix Identification Symbols on Aerospace Parts or through the use of commercial marking techniques that: (1) are sufficiently durable to remain intact through the typical lifespan of the property: and, (2) contain the data and data format required by the standards. This requirement includes deliverable equipment listed in the schedule and other equipment when no longer required for contract performance and NASA directs physical transfer to NASA or a third party. The Contractor must identify property in both machine and human readable form unless the use of a machine readable-only format is approved by the NASA Industrial Property Officer.

(b) Equipment must be marked in a location that will be human readable, without disassembly or movement of the equipment, when the items are placed in service unless such placement would have a deleterious effect on safety or on the item's operation.

(c) Concurrent with equipment delivery or transfer, the Contractor must provide the following data in an electronic spreadsheet format:

(1) Item Description.

(2) Unique Identification Number (License Tag).

(3) Unit Price.

(4) An explanation of the data used to make the unique identification number.

(d) For equipment no longer needed for contract performance and physically transferred under paragraph (a) of this clause, the following additional data is required:

(1) Date originally placed in service.

(2) Item condition.

(e) The data required in paragraphs (c) and (d) of this clause must be delivered to the NASA center receiving activity listed below:

Goddard Space Flight Center (Greenbelt deliveries) Building 35, Code 279
Greenbelt, MD 20771

(f) The contractor must include the substance of this clause, including this paragraph (f), in all subcontracts that require delivery of equipment.

(End of clause)

Inspection and Acceptance

NFS Clauses Incorporated by Full Text

1852.246-72 Material Inspection and Receiving Report. (SEP 2025) (Deviation)

(a) At the time of each delivery to the Government under this contract, the Contractor must prepare and furnish a Material Inspection and Receiving Report (DD Form 250 series). The forms must be prepared and distributed as follows:

(1) Via mail and marked “Advance Copy”, one copy each to the Contracting Officer, the Contracting Officer’s Representative (if designated in the contract), and to the cognizant Administrative Contracting Officer, if any.

(2) Via mail, the original and 1 copy (unfolded) to the shipment address (delivery point) specified in Section F of this contract. Mark the exterior of the envelope “CONTAINS DD FORM 250”. This must arrive prior to the shipment.

(3) With shipment in waterproof envelope (one copy) for the consignee.

(4) If the shipment address is not directly to the Goddard Space Flight Center (Greenbelt) central receiving area, then one copy of the DD Form 250 must be provided (via mail) to:

Receiving and Inspection (Code 279),
Goddard Space Flight Center,
Greenbelt, MD 20771

(b) The Contractor must prepare the DD Form 250 in accordance with NASA FAR Supplement 1846.6. The Contractor must enclose the copies of the DD Form 250 in the package or seal them in a waterproof envelope, which must be securely attached to the exterior of the package in the most protected location.

(c) When more than one package is involved in a shipment, the Contractor must list on the DD Form 250, as additional information, the quantity of packages and the package numbers. The Contractor must forward the DD Form 250 with the lowest numbered package of the shipment and print the words "CONTAINS DD FORM 250" on the package.

(End of clause)

FAR Clauses Incorporated by Full Text

52.247-30 F.o.b. Origin, Contractor's Facility. (FEB 2006)

(a) The term "f.o.b. origin, contractor's facility," as used in this clause, means free of expense to the Government delivered on board the indicated type of conveyance of the carrier (or of the Government, if specified) at the designated facility, on the named street or highway, in the city, county, and State from which the shipment will be made.

(b) The Contractor shall-

(1) (i) Pack and mark the shipment to comply with contract specifications; or

(ii) In the absence of specifications, prepare the shipment in conformance with carrier requirements to protect the goods and to ensure assessment of the lowest applicable transportation charge;

(2) (i) Order specified carrier equipment when requested by the Government; or

(ii) If not specified, order appropriate carrier equipment not in excess of capacity to accommodate shipment;

(3) Deliver the shipment in good order and condition to the carrier, and load, stow, trim, block, and/or brace carload or truckload shipment (when loaded by the Contractor) on or in the carrier's conveyance as required by carrier rules and regulations;

(4) Be responsible for any loss of and/or damage to the goods-

(i) Occurring before delivery to the carrier;

(ii) Resulting from improper packing and marking; or

(iii) Resulting from improper loading, stowing, trimming, blocking, and/or bracing of the shipment, if loaded by the Contractor on or in the carrier's conveyance;

(5) Complete the Government bill of lading supplied by the ordering agency or, when a Government bill of lading is not supplied, prepare a commercial bill of lading or other transportation receipt. The bill of lading shall show-

(i) A description of the shipment in terms of the governing freight classification or tariff (or Government rate tender) under which lowest freight rates are applicable;

(ii) The seals affixed to the conveyance with their serial numbers or other identification;

(iii) Lengths and capacities of cars or trucks ordered and furnished;

(iv) Other pertinent information required to effect prompt delivery to the consignee, including name, delivery address, postal address and ZIP code of consignee, routing, etc.;

(v) Special instructions or annotations requested by the ordering agency for bills of lading; *e.g.*, *"This shipment is the property of, and the freight charges paid to the carrier(s) will be reimbursed by, the Government";* and

(vi) The signature of the carrier's agent and the date the shipment is received by the carrier; and

(6) Distribute the copies of the bill of lading, or other transportation receipts, as directed by the ordering agency.

(End of clause)

NFS Clauses Incorporated by Full Text

1852.247-72 Advance Notice of Shipment (DEC 2025) (Deviation)

30 calendar days prior to shipping item(s) CLIN 1- CORE requirement Mars Telecommunications Network (MTN), the Contractor shall furnish the anticipated shipment date, bill of lading number (if applicable), and carrier identity to *TBP* and to the Contracting Officer.

(End of clause)

GSFC Clauses Incorporated by Full Text

GSFC 52.217-92 Period of Performance/Effective Ordering Period. (JAN 2014) - This clause is applicable to the Time & Materials CLIN, as authorized and defined in GSFC 52.211-91 SCOPE OF WORK.

The effective ordering period for CLIN 2 MTN Special Studies is Four (4) Years from the effective date of the Contract. The effective date of the contract is TBD.

Contract Administration Data

Additional Regulation or Supplement Clauses Incorporated by Reference

Number	Title	Effective Date
1852.245-75 Deviation	Property Management Clauses Deviation	Dec 2025
1852.245-78 Deviation	Physical Inventory of Capital Personal Property Deviation	Dec 2025
1852.245-79 Deviation	Records and Disposition Reports for Government Property with Potential Historic or Significant Real Value Deviation	Dec 2025

NFS Clauses Incorporated by Full Text

1852.232-80 Submission of Vouchers/Invoices for Payment. (APR 2018)

(a) The designated payment office is the NASA Shared Services Center (NSSC) located at FMD Accounts Payable, Bldg. 1111, Jerry Hlass Road, Stennis Space Center, MS 39529.

(b) Except for classified vouchers, the Contractor shall submit all vouchers and invoices using the steps described at NSSC's Vendor Payment information Web site at: *https://www.nssc.nasa.gov/vendorpayment*. Please contact the NSSC Customer Contact Center at 1–877–NSSC123 (1–877–677–2123) with any additional questions or comments.

(c) *Payment requests.*

(1) The payment periods are stipulated in the payment clause(s) contained in this contract.

(2) Vouchers submitted under cost type contracts and invoices submitted under fixed-price contracts shall include the items delineated in FAR 32.905(b) supported by relevant back-up documentation. Back-up documentation shall include at a minimum, the following information:

(i) *Vouchers.*

(A) Breakdown of billed labor costs and associated contractor generated supporting documentation for billed direct labor costs to include rates used and number of hours incurred.

(B) Breakdown of billed other direct costs (ODCs) and associated contractor generated supporting documentation for billed ODCs.

(C) Indirect rate(s) used to calculate the amount of billed indirect expenses.

(D) Progress reports, as required.

(ii) *Invoices.*

(A) Description of goods and services delivered as part of the contract's terms and conditions, including the dates of delivery/performance.

(B) Progress reports, as required.

(C) Date goods and services were performed.

(iii) *Fee vouchers.*

(A) Listing of all provisionally-billed fee by period or date earned since contract award.

(B) A reconciliation of all billed and earned fee.

(C) A clear explanation of the fee calculations.

(d) *Non-electronic payment requests.* The Contractor may submit a non-electronic voucher/invoice using the steps for non-electronic payment requests described at *https://www.nssc.nasa.gov/vendorpayment,* when any of the following conditions are met:

(1) The Contracting Officer administering the contract for payment has determined, in writing, that electronic submission would be unduly burdensome to the Contractor.

(2) The contract includes provisions allowing the contractor to submit vouchers or invoices using the steps for non-electronic payment. In such instances the Contractor agrees to submit non-electronic payment requests using the method or methods specified in Section G of the contract.

(e) Improper vouchers/invoices. The NSSC Payment Office will notify the contractor of any apparent error, defect, or impropriety in a voucher/invoice within seven calendar days of receipt by the NSSC Payment Office. Inquiries regarding requests for payment should be directed to the NSSC as specified in paragraph (b) of this section.

(f) *Other payment clauses.* In addition to the requirements of this clause, the Contractor shall meet the requirements of the appropriate payment clauses in this contract when submitting payment requests.

(g) In the event that amounts are withheld from payment in accordance with provisions of this contract, a separate payment request for the amount withheld will be required before payment for that amount may be made.

(End of clause)

1852.245-73 Financial Reporting of NASA Property in the Custody of Contractors (DEC 2025) (Deviation)

(a) The Contractor with furnished and acquired property must submit an electronic property submissions in NASA's Accountable Property System of Record (APSR)/NASA Electronic Submission System (NESS) annually; and a final property submission via https://ness.nasa.gov/contractor when the period of performance or award has ended. Once electronic property submission is completed, the contractor will be able to download their electronic forms, in accordance with this clause, the instructions on the form and NFS subpart 1845.71, and any supplemental instructions for the current reporting period issued by NASA.

(b)(1) Subcontractor use of the APSR/NESS is not required by this clause; however, the Contractor must include data on property in the possession of subcontractors in the electronic annual property submission.

The Contractor must mail the original signed NF 1018 directly to the cognizant NASA Center Industrial Property Officer and a copy to the cognizant NASA Center Deputy Chief Financial Officer, Finance, unless the Contractor is required by their contract to report with zero value award, that never had property associated.

(c)(1) The annual reporting period must be from October 1 of each year through September 30 of the following year. The report must be submitted in time to be received by October 31st. The information contained in these reports is entered into the NASA accounting system to reflect current asset values for agency financial statement purposes. Therefore, it is essential that required reports be received no later than October 31st.

(2) Some activity may be estimated for the month in which the report is submitted, if necessary, to ensure the electronic annual or final property submission is received when due. However, contractors' procedures must document the process for developing these estimates based on planned activity such as planned purchases or NASA Form 533 (NF 533) Contractor Financial Management Report) cost estimates. It should be supported and documented by historical experience or other corroborating evidence, and be retained in accordance with FAR Subpart 4.705, Specific Retention Periods. Contractors must validate the reasonableness of the estimates and associated methodology by comparing them to the actual activity once that data is available and adjust them accordingly. In addition, differences between the estimated cost and actual cost must be adjusted during the next reporting period. Contractors must have formal policies and procedures, which address the validation of the electronic annual property or final property submission data, including data from subcontractors, and the identification and timely reporting of errors. The objective of this validation is to ensure that information reported is accurate and in compliance with the NASA FAR Supplement. If errors are discovered on the electronic annual or final property submission after submittal the contractor must contact the cognizant NASA Center Industrial Property Officer (IPO) within 10 days after discovery of the error to discuss corrective action. If there is an error found during the Contractor's property submission, it will be disapproved, and Contractor will receive an automatic email explaining what is needed for it to be approved.

(3) In addition to an annual report, if at any time during performance of the contract, NASA-owned property in the custody of the Contractor has a value of $10 million or more, the Contractor must also submit a report no later than the 21st of each month in accordance with the requirements of paragraph (c)(2) of this clause.

(4) The Contracting Officer may, in NASA's interest, withhold payment until a reserve not exceeding $25,000 or 5 percent of the amount of the contract, whichever is less, has been set aside, if the Contractor fails to submit the electronic annual or final property submission reports in accordance with NFS subpart 1845.7101, any monthly report in accordance with (c)(3) of this clause, and any supplemental instructions for the current reporting period issued by NASA. Such reserve must be withheld until the Contracting Officer has determined that NASA has received the required reports. The withholding of any amount or the subsequent payment thereof must not be construed as a waiver of any Government right.

(d) An electronic final report must be submitted in the APSR/NESS within 30 days after disposition of all property subject to reporting when the contract performance period is complete in accordance with paragraph (b)
(1) through (3) of this clause.

(End of clause)

1852.245-76 List of Government Property Furnished Pursuant to FAR 52.245-1 (DEC 2025) (Deviation)

For performance of work under this contract, the Government will make available Government property identified below or in Attachment G – Government Furnished Equipment of this contract on a no charge-for-use basis pursuant to the clause at FAR 52.245– 1, Government Property, as incorporated in this contract. The Contractor must use this property in the performance of this contract at TBP and at other location(s) as may be approved by the Contracting Officer. Under FAR 52.245–1, the Contractor is accountable for the identified property.

(End of clause)

GSFC 52.245-99 Supplemental Financial Reporting of NASA Property in the Custody of Contractors (JUN 2019)

(a) In addition to the annual 1018 reporting required under clause NFS 1852.245-73 of this contract, the Contractor shall submit monthly property financial reports as described below if, at either award or any time during contract performance, the cumulative amount of NASA property is $10 million or more.

(1) Monthly property financial reports shall be submitted including item-level supporting data for all items acquired/fabricated/modified where the total acquisition cost of the item is $500,000 or more, in the contractor's or its subcontractors' possession. This data shall be submitted for all items in the property classifications of real property, equipment, special test equipment, special tooling, and agency peculiar property.

(2) Monthly data shall also be submitted for items of any acquisition cost in the classifications of materials and contract work-in-process (WIP). Specifically, itemized monthly data is required for materials and WIP line items when the estimated total acquisition cost of any item at completion will be $500,000 or more.

(b) The monthly reports shall be electronically submitted using the Contractor-Held Asset Tracking System (CHATS) at https://chats.nasa.gov using the format described in the CHATS user's manual.

(c) Acquisition costs shall be developed using actual costs to the greatest extent possible, especially costs directly related to fabrication such as labor and materials. Supporting documentation shall be maintained and available for all amounts reported, including any amounts developed using estimating techniques.

(d) All adjustments shall be thoroughly explained and directly related to a specific Government Fiscal Year (GFY). If the GFY cannot be determined, the default shall be the previous GFY.

(e) Work Breakdown Structures (WBS) shall be provided for all Contractor acquired property (CAP), WIP, and any new materials acquired. The format shall be a five digit numerical level. (i.e., 803-10). If the WBS is not identifiable, contact the NASA GSFC Property Office for further guidance, as provided in paragraph (f)(4) below.

(f)(1) The data required for the monthly submission is due the 21st day after the close of the month.e.g., August 21 for the month ending July 31 September 21 for the month ending August 31October 21 for the month ending September 30

(2) The monthly property financial reports required by this clause are separate from, and in addition to the annual NF 1018 reports.

(3) Both the NF 1018 report data and the September monthly report data are as of September 30. Corrections in monthly report data shall be handled as adjustments in the next monthly report after discovery of the error. (e.g., Errors in the September monthly report shall be reported as adjustments in the October monthly report. The NF 1018 shall reflect the corrected numbers and the contractor shall provide a note regarding the corrected monthly report error under Comments in the NF 1018.) Errors in the NF1018 found after the November 30 submission shall be reported as adjustments in the NF 1018 for the next reporting year, unless immediate correction and resubmission are directed by NASA.

(4) Questions may be directed to the following individuals of the NASA GSFC Property Office:

Angela King, (301) 286-3543, email angela.c.king@nasa.gov

Timothy Kelly (301) 286-8819, email: timothy.e.kelly@nasa.gov

(End of clause)

Special Contract Requirements

Additional Regulation or Supplement Clauses Incorporated by Reference

Number	Title	Effective Date
1852.208-81 Deviation	Restrictions on Printing and Duplicating Deviation	Sep 2025
1852.228-78 Deviation	Cross-Waiver of Liability for Science or Space Exploration Activities Unrelated to the International Space Station Deviation	Sep 2025
1852.235-73 Alternate I Deviation	Final Scientific and Technical Reports Alternate I Deviation	Sep 2025
1852.242-72 Deviation	Denied Access to NASA Facilities Deviation	Dec 2025

NFS Clauses Incorporated by Full Text

1852.232-77 Limitations of Funds (Fixed Price Contract). (MAR 1989)

(a) Of the total price of items *TBD* through *TBD*, the sum of $*TBD* is presently available for payment and allotted to this contract. It is anticipated that from time to time additional funds will be allocated to the contract in accordance with the following schedule, until the total price of said items is allotted:

SCHEDULE FOR ALLOTMENT OF FUNDS

DATE	AMOUNTS

(b) The Contractor agrees to perform or have performed work on the items specified in paragraph (a) of this clause up to the point at which, if this contract is terminated pursuant to the Termination for Convenience of the Government clause of this contract, the total amount payable by the Government (including amounts payable for subcontracts and settlement costs) pursuant to paragraphs (f) and (g) of that clause would, in the exercise of reasonable judgment by the Contractor, approximate the total amount at the time allotted to the contract. The Contractor is not obligated to continue performance of the work beyond that point. The Government is not obligated in any event to pay or reimburse the Contractor more than the amount from time to time allotted to the contract, anything to the contrary in the Termination for Convenience of the Government clause notwithstanding.

(c)

(1) It is contemplated that funds presently allotted to this contract will cover the work to be performed until
TBD.

(2) If funds allotted are considered by the Contractor to be inadequate to cover the work to be performed until that date, or an agreed date substituted for it, the Contractor shall notify the Contracting Officer in writing when within the next 60 days the work will reach a point at which, if

the contract is terminated pursuant to the Termination for Convenience of the Government clause of this contract, the total amount payable by the Government (including amounts payable for subcontracts and settlement costs) pursuant to paragraphs (f) and (g) of that clause will approximate 75 percent of the total amount then allotted to the

contract.

(3)

(i) The notice shall state the estimated date when the point referred to in paragraph (c)(2) of this clause will be reached and the estimated amount of additional funds required to continue performance to the date specified in paragraph (c)(1) of this clause, or an agreed date substituted for it.

(ii) The Contractor shall, 60 days in advance of the date specified in paragraph (c)(1) of this clause, or an agreed date substituted for it, advise the Contracting Officer in writing as to the estimated amount of additional funds required for the timely performance of the contract for a further period as may be specified in the contract or otherwise agreed to by the parties.

(4) If, after the notification referred to in paragraph (c)(3)(ii) of this clause, additional funds are not allotted by the date specified in paragraph (c)(1) of this clause, or an agreed date substituted for it, the Contracting Officer shall, upon the Contractor's written request, terminate this contract on that date or on the date set forth in the request, whichever is later, pursuant to the Termination for Convenience of the Government clause.

(d) When additional funds are allotted from time to time for continued performance of the work under this contract, the parties shall agree on the applicable period of contract performance to be covered by these funds. The provisions of paragraphs (b) and (c) of this clause shall apply to these additional allotted funds and the substituted date pertaining to them, and the contract shall be modified accordingly.

(e) If, solely by reason of the Government's failure to allot additional funds in amounts sufficient for the timely performance of this contract, the Contractor incurs additional costs or is delayed in the performance of the work under this contract, and if additional funds are allotted, an equitable adjustment shall be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the items to be delivered, or in the time of delivery, or both.

(f) The Government may at any time before termination, and, with the consent of the Contractor, after notice of termination, allot additional funds for this contract.

(g) The provisions of this clause with respect to termination shall in no way be deemed to limit the rights of the Government under the default clause of this contract. The provisions of this Limitation of Funds clause are limited to the work on and allotment of funds for the items set forth in paragraph (a). This clause shall become
inoperative upon the allotment of funds for the total price of said work except for rights and obligations then existing under this clause.

(h) Nothing in this clause shall affect the right of the Government to terminate this contract pursuant to the Termination for Convenience of the Government clause of this contract.

(End of clause)

GSFC Clauses Incorporated by Full Text

GSFC 52.219-90 Small Business Subcontracting Plan And Reports. (NOV 2021)

a. Subcontracting Plan (Contractor)

FAR clause 52.219-9, "Small Business Subcontracting Plan", is included in this contract. The agreed to Subcontracting Plan required by the clause is included as an attachment to the contract.

b. Subcontracting Plan (Subcontractors) In accordance with FAR clause 52.219#9 Small Business Subcontracting Plan, the Contractor must require that certain subcontractors adopt a plan similar to the Plan agreed to between the Contractor and the Government.

c. Individual Subcontract Reports (ISRs)

The Contractor shall prepare and submit their Individual Subcontract Reports (ISRs) (formerly known as the Standard Form 294), in accordance with the instructions listed in the Electronic Subcontract Reporting System (eSRS), available at http://esrs.gov.

ISRs must be submitted electronically in eSRS on a semi-annual basis. This report must be received no later than April 30 and October 30 each year for the reporting periods ending March 31 and September 30, respectively. Reports are required when due, regardless of whether there has been any subcontracting activity since the inception of the contract or since the last reporting period.

A final ISR must be submitted after contract completion. The final ISR submittal must be received no later than the due date for what would have been the next semi-annual report.

d. Summary Subcontract Reports (SSRs)

The Contractor shall prepare and submit Summary Subcontract Reports (SSRs) (formerly known as the Standard Form 295), in accordance with the instructions listed in the eSRS, available at http://esrs.gov and in accordance with FAR clause 52.219-9 Small Business Subcontracting Plan of this contract.

The SSRs must be submitted electronically in eSRS on an annual basis. This report must be submitted no later than October 30 each year for the twelve month period ending September 30.

e. Subcontractor Reporting FAR clause 52.219-9 Small Business Subcontracting Plan requires that the Contractor ensure that ISR and SSR reports are submitted by those subcontractors that have been required to adopt a Subcontracting Plan under the terms of the clause. These subcontractor reports must be submitted as required by paragraphs (c) and (d) above. The reports may be submitted through the Contractor or submitted directly. Regardless, the Contractor is responsible for ensuring proper and timely submittal of the required reports.

(End of clause)

GSFC 52.243-91 Launch Delays. (APR 2022)

The delivery schedule and/or period of performance of this contract is based upon a spacecraft launch date of TBD . In the event of a Government directed delay of the launch date, the Contracting Officer may inform the Contractor, in writing, of the revised launch date, and allow the Contractor to submit a proposal for the effect of this delay on the cost, delivery schedule, or other terms of the contract. This may result in an equitable adjustment to the estimated cost, fee(s), if any, and delivery schedule or period of performance. Failure to agree to an adjustment shall be considered as a dispute under the Disputes clause. However, nothing in this clause shall excuse the Contractor from proceeding with the contract as extended.

(End of clause)

GSFC 52.223-92 Government Property - Compliance With Safety Standards. (FEB 2016)

This contract involves the use of Government-furnished property or installation provided property. If any of the property does not conform to applicable Federal, state, or local safety standards, the Contractor shall promptly notify the Contracting Officer in writing with a copy to the **Goddard Space Flight Center Safety Division, Code 360.**

(End of clause)

CONTRACT FUNDING (TIME AND MATERIALS) - This clause applies exclusively to the Time & Materials CLIN, as authorized and defined in GSFC 52.211-91 SCOPE OF WORK.

CLIN 002: Special Studies Task Orders

(a) For payment purposes, the total amount allotted by the Government to each task order will be $**TBD by task order** and the total amount allotted to CLIN 002 is **$TBD**. It is contemplated that funds presently allotted to each task order will cover the work to be performed until **TBD by task order**. It is anticipated that from time-to-time additional funds will be allocated to each task order until the task order ceiling price and eventually the CLIN 002 ceiling price is reached.

(b) If funds allotted are considered by the Contractor to be inadequate to cover the work to be performed until that date, or an agreed date substituted for it, the Contractor shall notify the Contracting Officer in writing when within the next 60 days the work will reach a point at which, if the contract is terminated pursuant to any termination clause of this contract, the total amount payable by the Government (including amounts payable for subcontracts and settlement costs) pursuant to the terms of that clause will approximate 75 percent of the total amount then allotted to the task order or contract. The notice shall include the content required in contract clause 1852.232-77, LIMITATION OF FUNDS (FIXED PRICE CONTRACT), Section (c)(3).

(c) The Contractor agrees to perform or have performed work on the items specified in paragraph (a) of this clause up to the point at which, if this contract or task order is terminated pursuant to the termination clauses of this contract, the total amount payable by the Government (including amounts payable for subcontracts and settlement costs), in the exercise of reasonable judgment by the Contractor, approximate the total amount at the time allotted to the contract. The Contractor is not obligated to continue performance of the work beyond that point. The Government is not obligated in any event to pay or reimburse the Contractor more than the amount from time to time allotted to the contract or task order, anything to the contrary in the contract termination clauses notwithstanding.

(d) When additional funds are allotted from time to time for continued performance of the work under each task order, the parties shall agree on the applicable period of performance to be covered by these funds. The terms of paragraphs (b) and (c) above, shall apply to these additional allotted funds and substituted date pertaining to them, and the task order shall be modified accordingly.

(e) Nothing in this clause shall affect the right of the Government to terminate this contract or task orders pursuant to any termination clause on contract.

(f) The Government may at any time before termination, and, with the consent of the Contractor, after notice of termination, allot additional funds for this contract.

(g) The provisions of this clause with respect to termination shall in no way be deemed to limit the rights of the Government under the default clause of this contract. The provisions of this clause are limited to the work on and allotment of funds for the items set forth in paragraph (a). This clause shall become inoperative upon the allotment of funds for the total price of said work except for rights and obligations then existing under this clause.

(End of text)

Time and Materials (T&M) Orders Summary Reporting. **- This clause applies exclusively to the Time & Materials CLIN, as authorized and defined in GSFC 52.211-91 SCOPE OF WORK.**

The Contractor shall submit a monthly summary report specifying the invoiced amount associated with each Time and Materials (T&M) type order issued. The summary shall include the order number, current monthly invoiced amount, inception to date (ITD) labor hours expended by labor category multiplied by contract schedule rates, next months planned labor hours by labor category multiplied by the contract schedule rates, estimate at completion versus order ceiling price, ITD onsite expended labor hours, ITD offsite expended labor hours plus subcontractor labor hours, and ITD total expended labor hours. Other direct costs shall be provided in an itemized list for purchases of materials, travel, and miscellaneous costs.

Monthly reports shall be submitted in an electronic format using Microsoft Excel by the 15th day of the month following the month being reported. If the order is issued beyond the middle of a month, the first monthly report shall cover the period from issuance of the order until the end of the following month. The Contractor shall submit the reports required by this clause as follows:

Copies	Addressee	Mail Code
1	Contracting Officer	176
1	Contracting Officer's Representative (COR)	TBD
1	Resource Analyst	TBD

(End of Text)

52.212-4 Terms and Conditions--Commercial Products and Commercial Services (DEVIATION DEC 2025)(ALTERNATE I)(DEVIATION DEC 2025) – Paragraphs (a), (b), (i), (l), and (m) of Alternate I exclusively apply to the Time & Materials CLIN, as authorized and defined in contract clause GSFC 52.211-91 SCOPE OF WORK.

(a) The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference. As used in this clause--

Direct materials means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

Hourly rate means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are--

(1) Performed by the contractor;

(2) Performed by the subcontractors; or

(3) Transferred between divisions, subsidiaries, or affiliates of the contractor under a common control.

Materials means--

(1) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the contractor under

a common control;

(2) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;

(3) Other direct costs (e.g., incidental services for which there is not a labor category specified in the

contract, travel, computer usage charges, etc.);

(4) The following subcontracts for services which are specifically excluded from the hourly rate:

N/A; and

(5) Indirect costs specifically provided for in this clause.

Subcontract means any contract, as defined in FAR 2.101, entered into with a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract including transfers between divisions, subsidiaries, or affiliates of a contractor or subcontractor. It includes, but is not limited to, purchase orders, and changes and modifications to purchase

orders.

(b) *Inspection/Acceptance*.

(1) The Government has the right to inspect and test all materials furnished and services performed under this contract

at all places and times before acceptance. The Government will perform inspections and tests in a manner that will not unduly delay the work.

(2) If the Government performs inspection or tests on the premises of the Contractor or a

subcontractor, the Contractor shall furnish and shall require subcontractors to furnish all reasonable

facilities and assistance for
the safe and convenient performance of these duties.

(3) Unless otherwise specified in the contract, the Government will accept or reject services and materials at the place

of delivery as promptly as practicable after delivery, and they will be presumed accepted 60 days after the date of delivery, unless accepted earlier.

(4) At any time during contract performance, but not later than 6 months (or such other time as may be specified in

the contract) after acceptance of the services or materials last delivered under this contract, the Government may require the Contractor to replace or correct services or materials that at time of delivery failed to meet contract requirements. Except

as otherwise specified in paragraph (b)(6) of this clause, the cost of replacement or correction shall be determined under paragraph (i) of this clause, but the "hourly rate" for labor hours incurred in the replacement or correction shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified below, the portion of the "hourly rate" attributable to profit shall be 10 percent. The Contractor shall not tender for acceptance materials and services required to be replaced or corrected without disclosing the former requirement for replacement or correction, and, when required, shall disclose the corrective action taken. *[Insert portion of labor rate attributable to profit.]*

(5)(i) If the Contractor fails to proceed with reasonable promptness to perform required replacement or correction, and if the replacement or correction can be performed within the ceiling price (or the ceiling price as increased by the Government), the Government may--

(A) By contract or otherwise, perform the replacement or correction, charge to the Contractor any increased cost, or deduct such increased cost from any amounts paid or due under this contract; or

(B) Terminate this contract for cause.

(ii) Failure to agree to the amount of increased cost to be charged to the Contractor shall be a dispute under the Disputes clause of the contract.

(6) Notwithstanding paragraphs (b)(4) and (5) of this clause, the Government may, at any time, require the Contractor to remedy by correction or replacement, without cost to the Government, any failure by the Contractor to comply with the requirements of this contract, if the failure is due to--

(i) Fraud, lack of good faith, or willful misconduct on the part of the Contractor's managerial personnel; or

(ii) The conduct of one or more of the Contractor's employees selected or retained by the Contractor after any of the Contractor's managerial personnel has reasonable grounds to believe that the employee is habitually careless or unqualified.

(7) This clause applies in the same manner and to the same extent to corrected or replacement materials or services as to materials and services originally delivered under this contract.

(8) The Contractor has no obligation or liability under this contract to correct or replace materials and services that at time of delivery do not meet contract requirements, except as provided in this clause or as may be otherwise specified in the contract.

(9) Unless otherwise specified in the contract, the Contractor's obligati n to correct or replace Government- furnished property shall be governed by the clause pertaining to Government property.

(l) *Termination for the Government's convenience*. The Government reserves the right to terminate this contract, or any

part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work under this contract and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid an amount for direct labor hours (as defined in the Schedule of the contract) determined by multiplying the number of direct labor hours expended before the effective date of termination by the hourly rate(s) in the contract, less any hourly rate payments already made to the Contractor plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system that have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose.
This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred that reasonably could have been avoided.

(m) *Termination for cause*. The Government may terminate this contract, or any part hereof, for cause in the event ofany default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon written request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. Subject to the terms of this contract, the Contractor shall be paid an amount computed under paragraph (i), Payments, of this clause, but the "hourly rate" for labor hours expended in furnishing work not delivered to or accepted by the Government shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified in paragraph (b)(4) of this clause, the portion of the "hourly rate" attributable to profit shall be 10 percent. In the event of termination for cause, the

Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

LICENSES, PERMITS AND INSURANCE

(a) The Contractor shall obtain and maintain the necessary licenses, permits and clearances that may be required by the Federal Aviation Administration, Department of Transportation, Department of Commerce, Federal Communications Commission, Food and Drug Administration, Department of Defense, NASA, or other Governmental agencies in order to meet requirements under this contract.

(b) The Contractor shall meet all contract requirements, in addition to all requirements necessary to obtain and maintain licenses, permits and clearances. In the event conflicts arise, the Contractor is responsible for resolving the conflict and shall immediately notify the Contracting Officer of the conflict and shall describe the methods the Contractor used to try to resolve the conflict.

(c) The Contractor shall obtain a Federal Aviation Administration (FAA) license or permit, in accordance with 51 U.S.C. Subtitle V, Chapter 509, Commercial Space Launch Activities, Title 51, National and Commercial Space Programs, Subtitle V, Programs Targeting Commercial Opportunities, for operations under this contract.

(d) All costs and fees associated with obtaining licenses, permits and clearances shall be included in the applicable CLIN price.

(e) The Contractor shall operate its vehicles in accordance with NPR 8715.6, NASA Procedural Requirements for Limiting Orbital Debris.

(f) Any approvals required by the NASA Science Payloads are the responsibility of NASA.

(g) In accordance with 51 U.S.C. § 50914, the Contractor shall obtain Liability insurance or demonstrate financial responsibility in amounts to compensate for the maximum probable loss from claims by:

(1) A third party for death, bodily injury, or property damage or loss arising in connection with the covered launch activities under this contract; and

(2) The United States Government against a person for damage or loss to Government property arising in connection with the covered launch activities under this contract.

(h) The Contractor shall provide NASA a copy of the Maximum Probable Loss (MPL) determination and certificate of such insurance once it has been obtained.

(i) The foregoing insurance requirement does not preclude the Contractor from acquiring or continuing in effect any additional insurance to protect the interests of the Contractor or its Related Parties, such as Commercial General Liability coverage.

(End of Clause)

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.204-13 Deviation	System for Award Management - Maintenance Deviation	Nov 2025
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021
52.209-10 Deviation	Prohibition on Contracting with Inverted Domestic Corporations Deviation	Nov 2025
52.212-4 Alternate I Deviation	Terms and Conditions - Commercial Products and Commercial Services Alternate I Deviation (For CLIN 2 – IDIQ – Time and Materials -Special Studies Only)	Nov 2025
52.217-6	Option for Increased Quantity.	Mar 1989
52.217-8	Option to Extend Services.	Nov 1999
52.219-8 Deviation	Utilization of Small Business Concerns Deviation	Nov 2025
52.219-9 Alternate I	Small Business Subcontracting Plan. Alternate I	Nov 2016
52.219-28 Deviation	Postaward Small Business Program Representation Deviation	Nov 2025
52.222-35 Deviation	Equal Opportunity for Veterans Deviation	Nov 2025
52.222-36 Deviation	Equal Opportunity for Workers with Disabilities Deviation	Nov 2025
52.222-37 Deviation	Employment Reports on Veterans Deviation	Nov 2025
52.222-50 Deviation	Combatting Trafficking in Persons Deviation	Nov 2025
52.222-54	Employment Eligibility Verification.	Jan 2025
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024
52.227-16	Additional Data Requirements.	Jun 1987
52.232-17	Interest.	May 2014
52.232-18	Availability of Funds.	Apr 1984
52.232-23	Assignment of Claims.	May 2014
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023
52.232-90	Fast Payment Procedure	Nov 2025
52.233-3 Deviation	Protest after Award Deviation	Nov 2025
52.240-91	Security Prohibitions and Exclusions	Nov 2025
52.240-93	Basic Safeguarding of Covered Contractor Information Systems	Nov 2025
52.243-1 Deviation	Changes - Fixed Price Deviation	Jun 2025
52.244-6 Deviation	Subcontracts for Commercial Products and Commercial Services. Deviation	Nov 2025
52.245-1	Government Property.	Sep 2021
52.245-1 Alternate I	Government Property. Alternate I	Apr 2012
52.249-2	Termination for Convenience of the Government (Fixed-Price).	Apr 2012
52.249-4	Termination for Convenience of the Government (Services) (Short Form).	Apr 1984
52.249-8	Default (Fixed-Price Supply and Service).	Apr 1984
52.253-1 Deviation	Computer Generated Forms Deviation	Nov 2025

Additional Regulation or Supplement Clauses Incorporated by Reference

Number	Title	Effective Date
1852.203-70 Deviation	Display of Inspector General Hotlines Posters. Deviation	Sep 2025
1852.203-71 Deviation	Requirement to Inform Employees of Whistleblower Rights. Deviation	Sep 2025
1852.215-84	Ombudsman.	Nov 2023
1852.219-75	Individual Subcontracting Reports.	Apr 2015
1852.237-72 Deviation	Access to Sensitive Information Deviation	Dec 2025
1852.237-73 Deviation	Release of Sensitive Information Deviation	Dec 2025
1852.245-72 Deviation	Liability for Government Property Furnished for Repair or Other Services Deviation	Dec 2025
1852.246-74 Deviation	Contractor Counterfeit Electronic Part Detection and Avoidance. Deviation	Sep 2025

FAR Clauses Incorporated by Full Text

52.217-7 Option for Increased Quantity-Separately Priced Line Item. (MAR 1989)

The Government may require the delivery of the numbered line item, identified in the Schedule as an option item, in the quantity and at the price stated in the Schedule. The Contracting Officer may exercise the option by written notice to the Contractor within and up to the end of the end of the period of performance. Delivery of added items shall continue at the same rate that like items are called for under the contract, unless the parties otherwise agree.

(End of clause)

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (NOV 2025) (Deviation)

(a) Submission of offers. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include:

(1) The solicitation number;

(2) The name, address, telephone number of the Offeror;

(3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;

(4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) Period for acceptance of offers. The Offeror agrees to hold the prices in its offer firm for 180 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the

solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) Contract award (not applicable to Invitation for Bids). The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) Debriefings. If a post award debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

A.2 52.216-1 TYPE OF CONTRACT. (APR 1984)

The Government contemplates the award of a Firm-Fixed-Price (FFP) contract with Indefinite Quantity and Indefinite Delivery (IDIQ) components for Time and Materials (T&M) Task Orders for Special Studies resulting from this solicitation. The resulting contract will also include a Schedule and Performance Incentive.

(End of provision)

A.3 GSFC 52.233-2 GSFC MODIFICATION TO FAR 52.233-2 -- SERVICE OF PROTEST. (SEP 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from: Contracting Officer: Alisha Mercadante, Contracting Officer at alisha.m.mercadante@nasa.gov.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

A.4 1852.245-80 GOVERNMENT PROPERTY MANAGEMENT INFORMATION. (JAN 2011)

(a) The offeror shall identify the industry leading or voluntary consensus standards, and/or the industry leading practices, that it intends to employ for the management of Government property under any contract awarded from this solicitation.

(b) The offeror shall provide the date of its last Government property control system analysis along with its overall status, a summary of findings and recommendations, the status of any recommended corrective actions, the name of the Government activity that performed the analysis, and the latest available contact information for that activity.

(c) The offeror shall identify any property it intends to use in performance of this contract from the list of available Government property in the provision at 1852.245-81, List of Available Government Property.

(d) The offeror shall identify all Government property in its possession, provided under other Government contracts that it intends to use in the performance of this contract. The offeror shall also identify: The contract that provided the property, the responsible Contracting Officer, the dates during which the property will be available for use (including the first, last, and all intervening months), and, for any property that will be used concurrently in performing two or more contracts, the amounts of the respective uses in sufficient detail to support prorating the rent, the amount of rent that would otherwise be charged in accordance with FAR 52.245- 9, Use and Charges (June 2007), and the contact information for the responsible Government Contracting Officer. The offeror shall provide proof that such use was authorized by the responsible Contracting Officer.

(e) The offeror shall disclose cost accounting practices that allow for direct charging of commercially available equipment, when commercially available equipment is to be used in performance of the contract and the equipment is not a deliverable.

(f) The offeror shall identify, in list form, any equipment that it intends to acquire and directly charge to the Government under this contract. The list shall include a description, manufacturer, model number (when available), quantity required, and estimated unit cost. Equipment approved as part of the award need not be requested under NFS clause 1852.245-70,

(g)The offeror shall disclose its intention to acquire any parts, supplies, materials or equipment, to fabricate an item of equipment for use under any contract resulting from this solicitation when that item of equipment: Will be titled to the government under the provisions of the contract; is not included as a contract deliverable; and the Contractor intends to charge the costs of materials directly to the contract. The disclosure shall identify the end item or system and shall include all descriptive information, identification numbers (when available), quantities required and estimated costs.

(h) Existing Government property may be reviewed in **Attachment G**.

(End of provision)

A.5 1852.245-81 LIST OF AVAILABLE GOVERNMENT PROPERTY. (JAN 2011)

(a) The Government will make the following Government property available for use in performance of the contract resulting from this solicitation, on a no-charge-for-use basis in accordance with FAR 52.245-1, Government Property, included in this solicitation. The offeror shall notify the Government, as part of its proposal, of its intention to use or not use the property.

(b) The Government will make the following Government property available for use in performance of the contract resulting from this solicitation, on a no-charge-for-use basis in accordance with FAR 52.245-2, Government Property Installation Operation Services, as included in this solicitation. The offeror shall notify the Government of its intention to use or not use the property.

(c) The selected Contractor will be responsible for costs associated with transportation, and installation of the property listed in this provision.

(End of provision)

A.6 PROPOSAL PREPARATION—GENERAL INSTRUCTIONS

It is NASA's intent, by providing the instructions set forth below, to solicit information that will demonstrate the Offeror's competence to successfully complete the requirements specified in the Statement of Objectives (SOO). Generally, the proposal should:

- Demonstrate understanding of the overall and specific requirements of the proposed contract.
- Convey the company's capabilities for transforming understanding into accomplishment.
- Present in detail, the plans and methods for so doing.
- Present the costs associated with so doing.

In the event that other organizations are proposed as being involved in conducting this work, their relationships during the effort shall be explained and their proposed contributions shall be identified and integrated into each part of the proposal, as appropriate.

(a) PROPOSAL FORMAT AND ORGANIZATION

(1) Offerors shall submit proposals in four volumes as specified below:

Volume	**Title**
I	Offer Volume
II	Technical Proposal Volume
III	Price Volume
IV	Past Performance Volume

(2) All pages of Volumes I, II, III, and IV shall be numbered and identified with the Offeror's name, RFP number and date. Subsequent revisions, if requested, shall be similarly identified to show revision number and date. A table of contents shall be provided with figures and tables listed separately.

(3) Each proposal volume shall be submitted in a single searchable Adobe Portable Document Format (PDF) file (compatible with ADOBE Reader version DC or 2017), with appropriate bookmarks. For Price volume exhibits required to be submitted in Microsoft Office Excel format

(described below), spreadsheets shall also be converted to PDF, in the most readable manner practicable, and submitted as part of a single PDF file for Volume III.

(4) The format for each proposal volume shall parallel, to the greatest extent possible, the format of the evaluation instructions of this solicitation. The proposal content shall provide a basis for evaluation against the requirements of the solicitation. Each volume of the proposal shall specify the evaluation criteria being addressed and contain a table of contents aligned with the RFP evaluation criteria. This table of contents is excluded from the page limitations contained in paragraph (b)(1) below.

(5) Information shall be precise, factual, detailed and complete. Offerors shall not assume that the evaluation team is aware of company abilities, capabilities, plans, facilities, organization or any other pertinent fact that is important to accomplish the requirements of the Statement of Objectives and the Offeror proposed Performance Work Statement (PWS). The evaluation will be based primarily on the information presented in response to this solicitation.

(b) PROPOSAL CONTENT AND PAGE LIMITATIONS

(1) The following table contains the page limitations for each portion of the proposal submitted in response to this solicitation. Additional instructions for each component of the proposal are located in the solicitation provision noted under the Reference heading.

Proposal Component	Volume	Page/Time Limitations
Offer Volume	**I**	**Excluded**
Technical Proposal Volume*	**II**	**Mixed**
(a) Performance Work Statement		**Excluded**
(b) Oral Technical Proposal Presentation		**240 Minutes Max****
(c) Oral Technical Proposal Presentation Charts		**90 Charts**
(d) Additional Written Documentation and Information		**Mixed**
(1) Radio Frequency link budget from template - Attachment B – Appendix B		**Excluded**
(2) Cybersecurity Compliance – Exhibit 9		**Excluded**
(3) Small Business Concerns		**5**
Cover Page, table of Content, Indices, List of Acronyms, Dividers/Tabs, Enclosure 2: MTN Trajectory Data Package		**Excluded**
(d) Deviations/Exceptions		**Excluded**
Price Volume	**III**	**Mixed**
Bases Of Estimates		**5 Pages*****
Payment Schedule		**Excluded**
Price Exhibits		**None**
IDIQ Fixed Price Matrices (Attachment E)		**Excluded**
Deviations/Exceptions		**Excluded**
Past Performance Volume	**IV**	**Mixed**
(a) Information from the Offeror		**25 Pages*****

Proposal Component	Volume	Page/Time Limitations
(b) Cover Page, Indices, Past Performance Questionnaires, Customer Evaluations, Termination/Descope information, and List of Acronyms		**Excluded**
(c) Deviations/Exceptions		**Excluded**

*The Government considers the recorded Oral Technical Proposal Presentation and the written documentation to constitute the Technical Proposal, and it is treated as Contractor bid or proposal information subject to FAR 3.104.

**NOTE: The Offeror shall not submit pre-recorded video(s). The Offeror shall present a "live" Oral Technical Proposal Presentation that will be recorded and transcribed via TEAMS.

*** Prime and each individual significant subcontractor (page limitation is for the total component (prime and subs).

(3) When page limitations apply to a volume or specific section, a page is defined as one side of a sheet, 8-1/2" x 11", with at least one inch margins on all sides, using not smaller than 12 point type Times New Roman font. Line spacing or the amount of vertical space between lines of text shall not be less than single line (Microsoft Office Word's default line spacing). Character spacing shall be "Normal", not "Expandtions & Exed" or "Condensed." The margins may contain headers and footers, but shall not contain any proposal content to be evaluated. Electronic foldout pages count as an equivalent number of 8-1/2" x 11" pages. The metric standard format most closely approximating the described standard 8-1/2" x 11" size may also be used. The excel exhibits provided are formatted using 9-12 point type Arial font.

Diagrams, tables, artwork, and photographs may be reduced and, if necessary, run landscape to eliminate oversize pages. Text in Diagrams, schedules, charts, tables, artwork, and photographs shall be no smaller than 10 point type Times New Roman font. Diagrams, tables, artwork, and photographs shall not be used to circumvent the text size limitations of the proposal.

A presentation chart shall be provided on standard 8-1/2" x 11" paper in landscape orientation, one chart per page. No chart text shall be smaller than 12 point, except in graphics and tables where type shall be no smaller than 10 point. Charts shall be numbered sequentially.

(4) Title pages, tabs, and tables of contents are excluded from the specified in paragraph (1) of this provision (as well as other documents specified in table (b)(1) above). Proposal sections that do not have an associated page limit should be strictly limited to the information described as part of that section. Regardless of where it appears in the proposal, information construed as belonging in a page-limited section of the proposal will be so construed and count against that section's page limit.

(5) The Government intends to evaluate proposals and award contract(s) without discussions with Offerors. Therefore, the Offeror's initial proposal should contain the Offeror's best terms from a price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If discussions are held and final proposal revisions are requested, the Government will specify separate page limitations in its request for that submission.

(6) Pages submitted in excess of the limitations specified in this provision will not be evaluated by the Government.

(End of provision)

A.7 OFFER VOLUME.(Volume I)

This must be a separate volume.

SF 1449 – The offeror shall appropriately complete and return Blocks 12, 17, and 30 and return the completed SF 1449. The signed SF1449 and the pages with the required fill-ins must be submitted. Annual representations and certifications shall be completed electronically via the System for Awards Management (SAM) web site accessed through https://www.acquisition.gov. The balance of the solicitation need not be returned unless the Offeror has made changes to other pages that will constitute part of the contract. Any such changes must be separately identified in the Summary of Exceptions.

The offeror's proposal shall remain valid for a period of not less than 180 calendar days.

(1) Provide the names and phone numbers of persons to be contacted for clarification of questions of a technical nature and business nature. Provide the name, address, current phone number, and fax number of your cognizant Defense Contract Audit Agency (DCAA) representative.

(2) Provide information addressing all of the elements under FAR 9.104 to demonstrate responsibility. Provide Line of Credit information required under (b)(2) of Subfactor B of this provision.

(3) Provide the names, phone numbers, and email addresses of persons to be contacted for clarification of questions of a technical nature and business nature. Identify any consultants and/or subcontractors used in writing this proposal (if any) and the extent to which their services will be available in the subsequent performance of this effort.

The contract schedule refers to TBD and TBP. They are defined as follows:

TBD = TO BE DETERMINED BY THE
GOVERNMENT

TBP = TO BE PROPOSED BY THE
CONTRACTOR

(a) SUMMARY OF EXCEPTIONS

Include a statement of acceptance of the anticipated contract provisions and proposed contract schedule, or list all specific exceptions to the terms, conditions, and requirements of this solicitation. Include the reason for the exception, new terms, conditions, and/or clauses, including any proposed benefit to the Government.

This list must include all exception(s), deviation(s) and/or conditional assumptions taken. Offerors are cautioned that exceptions or new terms, conditions, or clauses may result in a determination of proposal unacceptability, may preclude award to an Offeror if award is made without discussions, or may otherwise affect an Offeror's competitive standing.

(b) ADDITIONAL INFORMATION TO BE FURNISHED

(1) Contract Administration

Furnish the information listed below:

a. Cognizant Government audit agency with mailing address, email address, telephone number, and fax number.

b. Cognizant Government inspection agency with mailing address, email address, telephone number, and fax number.

Cognizant Government Administrative Contracting Officer by name with mailing address, email address, telephone number, and fax number.

(2) Responsibility Information

Provide information addressing all of the elements under FAR 9.104 to demonstrate responsibility (address the elements under this section that are not addressed in another proposal volume).

(3) Taxpayer Identification Number

Prime Offerors shall provide their Taxpayer Identification Number (TIN) (the number required by the Internal Revenue Service (IRS) to be used by the Offeror in reporting income tax and other returns).

(4) Government Property

Offerors shall have a system of internal controls to manage (control, use, preserve, protect, repair, and maintain) Government property in its possession. Section L of this solicitation contains NFS provisions 1852.245 80, "Government Property Management Information" and 1852.245-81, "List of Available Government Property." The information regarding the Offeror's Government property management procedures required by these two provisions shall be included in this volume. However, if an analysis of the Offeror's property management policies, procedures, practices, and systems has not been previously performed by the Government, the Offeror shall describe their internal processes, systems, procedures, records, and methodologies to be employed to ensure effective and efficient control of Government property under this contract in accordance with the requirements specified in FAR 52.245-1, Government Property.

(5) Waiver of Rights to Inventions

This solicitation contains NFS clause 1852.227-70, "New Technology—Other than a Small Business Firm or Nonprofit Organization" and NFS provision 1852.227-71, "Request for Waiver to Rights to Inventions". Any petitions for advance (prior to contract execution) waiver of rights to inventions should be included in this volume.

(6) Subcontractor Listing

The Offeror shall provide a summary listing (by name and address) of all subcontractors (regardless of dollar value) that have been identified throughout the Offeror's proposal and the subcontract Core value associated with each entity.

(7) Information Technology (IT) Security Management Plan

In accordance with NFS clause 1852.204-76, Security Requirements for Unclassified Information Technology Resources, within 30 days after the contract effective date, the successful contractor shall submit for NASA approval a comprehensive IT Security Management Plan, which will be incorporated into the contract under as **Attachment J**. The Contracting Officer will review the plan for completeness and identify to the Contractor substantive weaknesses and omissions for necessary correction. Once the Contractor has corrected the substantive weaknesses and omissions, the Contracting Officer shall incorporate the approved plan into the contract as a compliance document. The information to be included in this plan is outlined in Enclosure 4, Information Technology Security Management Plan, which is provided for information purposes at this time and shall be used by the successful offeror to prepare their plan.

(8) The Working Families Tax Cut (WFTC) Act

Section 51 U.S.C § 20306 (a)(1) provides for the procurement, using a competitively bid, firm fixed-price contract with a United States commercial provider, of a high-performance Mars telecommunications orbiter, and specifies requirements applicable to that procurement.

To enable NASA to comply with the requirements of the WFTC, each offeror shall provide the information below in a manner and format that is most suitable to the offeror, that is clear and easy to follow. The information below will be used to determine the offeror's eligibility to compete for this requirement:

- Documentation to demonstrate that the offeror is US commercial provider.
- Documentation to demonstrate that the offeror received NASA funding in FY 2024 or FY 2025 for commercial design studies for Mars Sample Return.
- Documentation to demonstrate that offeror proposed a separately and independently launched Mars telecom orbiter to support an end-to-end Mars Sample Return mission.

(End of Provision)

A.8 TECHNICAL PROPOSAL

The Offeror Technical Proposal consist of three (3) parts

1. Written Technical Proposal (PWS)
2. Oral Technical Proposal
3. Additional Written Documentation and Information

Any proposed system capabilities exceeding threshold requirements are valued by the Government, and if the offeror wants them to potentially be evaluated as strengths in the Technical Proposal evaluation, then the offeror shall capture those above threshold requirements in proposed MTN Performance Work Statement. The offeror may receive credit only to the extent they are captured in the PWS and explained in the offeror's oral presentation. Inconsistent statements may result in a neutral or negative evaluation by the Government. Any proposed system exceeding threshold requirements may result in a positive, neutral or negative evaluation in spite of the Government's rights to waive that requirement (for consideration) during contract performance.

A.8.1. WRITEN TECHNICAL PROPOSAL INSTRUCTIONS (PWS)

(a) SOURCE DOCUMENTS

The Offeror shall develop the PWS using the following source documents:

Exhibit 1 - Statement of Objectives (SOO)

Enclosure 1 - MTN Draft Performance Work Statement (PWS)

Attachment B – MTN Objectives and Requirements

(b) GENERAL REQUIREMENTS

The Offeror shall develop and submit a Performance Work Statement (PWS) as part of Volume II, Technical Proposal. The PWS shall demonstrate the Offeror's understanding of the Mars Telecommunications Network (MTN) requirements and ability to achieve the Government's Core objectives defined in Exhibit 1, Statement of Objectives (SOO).

In addition, the Offeror's PWS shall include the Government defined mandatory work statements provided in the Draft Performance Work Statement (Enclosure 1). The Draft PWS employs a standard level 2 Work Breakdown Structure (WBS) used for space flight projects, but the Offeror may structure their proposed PWS at its discretion.

Upon contract award, the Offeror's proposed PWS shall become Attachment A, MTN Performance Work Statement (PWS).

A.8.2. ORAL TECHNICAL PROPOSAL PRESENTATION INSTRUCTIONS (TEAMS)

The Technical Proposal (except for the written documentation noted below) will also be presented in the form of an Oral Technical Proposal Presentation. Written documentation shall be submitted in accordance with the guidelines provided in the table under Section A.6.

(a) GROUND RULES

The following ground rules apply to the Oral Technical Proposal Presentation:

(1) The Offeror will be notified of the time of the Oral Technical proposal presentation, after meeting the initial compliance check and statutory eligibility requirement of the WFTC. Offerors determined eligible to compete will have at least one week after notification to finalize its preparation of its Oral Presentation.

(2) The Government will randomly assign a presentation date/time for the Oral Technical Proposal Presentation to each Offeror. The Government will pick random numbers from a "blind" receptacle, which correspond to the number assigned to the written proposal. From the first random number chosen until the last, the numerical sequence of the firms scheduled to present will be established. After assigning the sequence of presentations, the Offeror will be notified with the scheduled time. The Offeror shall be responsible for its setup location that can interact with the Government via Microsoft TEAMS for the Oral Technical Proposal Presentation.

(3) The Offeror shall present a "live" Oral Technical Proposal Presentation which will be recorded and transcribed by the Government via TEAMS. At the end of the presentation, the recording to each Offeror.

(4) The Government will not make any changes to the content of the recorded material; i.e. no editing will be permitted. The length of the presentation shall be no more than 240 minutes. No conversations will be permitted during the taping, other than clarifications of the proposal as discussed below, which shall not be included in the allotted time. The Government evaluation team will be in attendance during the recording.

(5) The Offeror shall have no more than seven (7) Key Personnel present at the oral presentation. Additional attendees beyond these 7 are not allowed. Those presenting, will state their names and role within the company, and the key personnel position they are to perform under the contract.

(6) The Offeror is responsible for the content and accuracy of the material it presents; the time period it devotes to each subject covered within the allotted; and the clarity of the material presented.

(7) The WRITTEN Oral Technical Proposal Presentation Charts shall be submitted by the proposal due date. Only these charts shall be utilized and/or referenced by the Offeror during its Oral Technical Proposal Presentation. No changes to the charts will be permitted after the proposal due date.

(8) The Government considers the recorded and transcribed Oral Technical Proposal Presentation and the written proposal documentation to constitute the Technical Proposal, and it is treated as Contractor bid or proposal information subject to FAR 3.104.

(9) The structure of the Oral Technical Proposal Presentation shall follow the format and be compliant with all the mandatory instructions described above.

(10) The Government's evaluation shall be based on the evaluation criteria set forth herein. After completion of the Oral Technical Proposal Presentation, the Government will caucus, then reconvene with the Offeror, at which time the Government may request clarification. Any such interchange between the Offeror and the Government will be for clarification only and will not constitute discussions. The time required for clarification will not be counted against the Offeror's time limit. No changes or revisions to the Oral Technical Proposal

Presentation will be allowed as a result of clarifications.

(b) SOURCE DOCUMENTS

The Offeror's Oral Presentation shall address the following:

(1) The proposed system's capability to satisfy threshold requirements as articulated in the MTN Objectives and Requirements Document (Attachment B), including descriptions of system capabilities articulated in artifacts such as block diagrams; performance analyses, budgets, and margins; design attributes such as fault tolerance, parts selection, design and construction standards, and hardware heritage/maturity; mission design attributes such as launch vehicle identification and integration, ground operations (including DSN integration/compatibility, MOC, and scheduling interfaces), mission timeline, transfer and orbiter regime, critical events, and relay service performance contacts; and any other key system attributes that contribute to projected system performance.

(2) capabilities exceeding the threshold requirements and approaching or exceeding goal requirements articulated in MTN Objectives and Requirements Document (Attachment B) and supported by system performance analyses and any other artifacts that clearly demonstrate system capabilities.

(3) Project schedule including major reviews, key decision dates, procurement of long-lead items (including identification of all long-lead items and credible estimates (e.g. in-hand quotes) for lead-time), fabrication, assembly, test & integration, launch, and commissioning activities.

(4) Proposed Payment schedules, with milestone payments that incentivize schedule performance.

(5) Proposed management and technical communications plans, including the offeror's plan to accommodate NASA personnel accessibility and involvement in key system-level decision processes, access to hardware buildup, witnessing tests, access to problem/anomaly databases, etc.

(6) System interoperability as demonstrated through utilization of industry standards and protocols (i.e. non- proprietary), compatibility with established/emerging space architectures, commitment to clearly defined descriptions of key system interfaces to relay users and future

elements of the MTN, and end-to-end test and validation plans thereof.

(7) System extensibility as demonstrated by capability of the proposed system to accommodate upgrades /updates and extend capabilities (potentially in concert with future space and ground elements of the MTN).

A.8.3 Additional Written Documentation and Information

(1) The Offeror shall provide Radio Frequency (RF) link budget analysis for each RF link using the template in Appendix B of Attachment B, MTN Objectives and Requirements Document. Additionally, the Offeror, shall provide trajectory and vehicle performance parameters and binary spice file(s) as described in Enclosure 2 to ensure compliance with MTN-REQ-013 (Operational Readiness).

(2) The Offeror shall demonstrate cybersecurity compliance by providing a completed Commercial Architecture Security Questionnaire (CASQ).

(3) Commitment to the Small Business Program

- All Offerors must briefly describe the work that small businesses will perform to meet the stated requirements. Proposals shall also identify any work to be subcontracted that is considered "High Technology." "High Technology" is defined as research and development efforts that are within or advance the state-of-the-art in technology discipline and are performed primarily by professional engineers, scientists, and highly skilled and trained technicians or specialists.

- If the subcontractor(s) is known, Offerors shall describe the work that each subcontractor will perform and specify the extent of commitment to use the subcontractor(s) (enforceable vs. non-enforceable commitments). (Small Business Offerors shall provide this information to the extent that subcontracting opportunities exist in their approach to performing the requirement.)

- The NASA Mentor-Protégé Program is designed to incentivize NASA large prime contractors (Mentors) to assist eligible small entities (protégés) in enhancing their capabilities to perform NASA contracts and subcontracts foster the establishment of long-term business relationships between these entities and NASA large prime contractors, and increase the overall number of these entities that receive NASA contract and subcontract awards. Provide a description of the prime's planned participation in the NASA Mentor Protégé Program.

(End of Provision)

A.8.1 PAST PERFORMANCE

An Offeror's past performance record indicates the relevant quantitative and qualitative aspects of performing services or delivering products similar in size and content to the requirements of this acquisition.

The Offeror shall provide, at a minimum, the following information in support of its proposal to facilitate the evaluation of the Offeror's past performance as related to the requirements of the proposed contract.

(a) INFORMATION FROM THE OFFEROR

Prime Offerors shall furnish the information requested below for all of your most recent contracts (completed and ongoing) for similar efforts with a minimum average annual cost/fee incurred of $20M that your company has had within the last 10 years of the RFP release date.

Joint Venture (JV) prime Offerors should provide at least one of the past performance referenced contracts required above in the name of the JV. If the JV is newly established and cannot provide past performance referenced contracts in the name of the JV, then past performance referenced contracts from individual prime partners of the JV should be submitted for consideration, with at least one of the JV past performance references from each JV partner. For the purposes of the Past Performance Volume, a protégé prime partner proposed as part of a mentor protégé prime JV, shall follow the instructions for a significant subcontractor in this provision.

A proposed significant subcontractor for the past performance volume is defined as any proposed subcontractor that is estimated to meet/exceed an average annual cost/fee of $10M. The Offeror shall provide the information requested below for any significant subcontractor(s) for those similar efforts within the last 10 years of the RFP release date with a minimum average annual cost/fee incurred of at least 10% of the estimated average annual dollar value of the proposed significant subcontract.

For example (note, these example numbers may not relate to this specific procurement), if a procurement is valued at an average annual value of $50M and a proposed significant subcontractor for the effort has a proposed average annual cost/fee of $16M, the Offeror shall provide relevant current/past contract references that have a minimum average annual cost/fee incurred at/above $1.6M (10% of $16M) for that significant subcontractor.

If a prime Offeror or significant subcontractor is submitting past performance data on a current/past contract vehicle that includes multiple tasks, orders, etc, all effort under that contract vehicle may be consolidated for the purposes of meeting the average annual cost/fee incurred in the instructions above and for the purpose of evaluating contract relevance for the proposed requirement.

The Offeror shall provide an estimated value and percentage of work to be performed on this contract by the Prime Offeror and each significant subcontractor. Indicate the primary functions (SOW, WBS, etc.) to be performed by the Prime Offeror and each proposed significant subcontractor. Indicate which contracts are most related (i.e. similar in size and content) and how they are related to the proposed effort, as well as which contracts were performed by the division of your company (if applicable) that will perform the proposed contract/subcontract.

If applicable, Offerors may provide the experience or past performance of a parent or affiliated or predecessor company to an Offeror (including Joint Venture prime partner companies and/or a parent or affiliated company that is being otherwise proposed as a subcontractor on this effort) where the firm's proposal demonstrates that the resources of the parent or affiliate or predecessor will affect the performance of the Offeror. The Offeror shall demonstrate that the resources of the parent or affiliate or predecessor company (its workforce, management, facilities or other resources) shall be provided or relied upon for contract performance such that the parent or affiliate or predecessor will have meaningful involvement in contract performance.

The Offeror shall provide the following information on all past/current contract references that meet the above criteria for the Prime Offeror and each significant subcontractor:

- Customer's name, E-mail address, and telephone number of both the lead contractual and technical personnel most familiar with the Offeror's performance record. (Please verify the information provided is current and correct).

- Cage Code and/or DUNS Number of the contractor performing the work.

- Contract number, type, and total original and present or final contract value.

- The current contract expenditures incurred to date, the date in which the expenditures have been incurred through, and the Average Annual Cost/Fee Incurred to Date. For example (note, these example numbers may not relate to this specific procurement):

A current five-year contract that you are performing has a total estimated value of $100,000,000. As of the latest cost report which reflected cost/fee through the first 2 years and 4 months of performance, the total amount of cost/fee incurred by the Offeror over the duration of the contract was $43,500,000.

In this example, an Offeror would provide the following:

Current Contract Expenditures incurred to Date: $43,500,000.

Date in which Expenditures have been incurred through: Insert Date of cost report that indicated cost/fee total of $43,500,000 after 2 years and 4 months of performance.

Average Annual Cost/Fee Incurred to Date: $18,669,528 ($43,500,000/2.33 years)

- Date of contract, place(s) of performance, and delivery dates or period of performance.

- Brief description of contract work and comparability to the proposed effort. It is not sufficient to state that it is comparable in magnitude and scope. Rationale must be provided to demonstrate that it is comparable.

- Address the amount of subcontracted work/personnel compared to the proposed subcontract approach for this effort. For past IDIQ contracts, identify the number of simultaneous task orders that were managed.

- Method of acquisition: competitive or noncompetitive.

- Nature of award: initial or follow-on. If initial, indicate whether award was preceded by a Government, customer, or Offeror financed study.

- Identify and explain major technical problems and how they were overcome. List any major deviations or waivers to technical requirements that were granted by the customer.

- Identify and explain completion successes and delays, including adherence to program schedules. Provide an assessment of the performance (technical and schedule) on these past programs and support these assessments with metrics such as award or incentive fees earned.

- Cost management history; identify and explain any cost overruns and underruns, and cost incentive history, if applicable.

- Average number of personnel on the contract per year and percent turnover of personnel per year.

- Recent customer evaluations of past performance including Award Fee Evaluation results, Fee Determination Official letters, Annual Performance Evaluation Forms, etc. (Excluded from the page limitation).

- List any contracts terminated (partial or complete) within the past 5 years and basis for termination (convenience or default). Include the contract number, name, address, and telephone number of the terminating officer (please verify telephone numbers). Include contracts that were "descoped" by the customer because of performance or cost problems. (Excluded from the page limitation).

In consideration of 13 C.F.R. §125.2(g), the offeror may provide for consideration, within the established page limitation, one additional referenced contract for each first-tier small business subcontractor not included in the reference limitation established for this volume. While the reference limitation is considered adequate for the offeror to demonstrate its relevant performance for this evaluation, it is within the offeror's discretion how these references are allocated across the proposed team. However, should the assessment of additional small business first-tier subcontractors be necessary, provide for each additional reference only, subcontractor name and CAGE code, contract number, contract value, period of performance, and current customer point of contact information (e.g., contracting officer name, email).

(b) PRIOR CUSTOMER EVALUATIONS (PAST PERFORMANCE QUESTIONNAIRES)

The offeror and any proposed significant subcontractor(s) [as defined in paragraph (a)] shall provide the questionnaires provided as **Exhibit 10** to each of the above references to establish a record of past performance. The Offeror shall instruct each of its references to return the questionnaire directly to the Government Contracting Officer via email. The questionnaire respondent shall be a representative from the technical customer and responsible Contracting Officer with direct knowledge of your firm's performance. If possible, the Offeror and any proposed significant subcontractor(s) shall provide questionnaires to customers from NASA contracts, other Government contracts, and commercial contracts. For proposed significant subcontractor(s), references shall concern only work performed by the subcontractor's business entity that will perform the work under this contract, if awarded.

The Offeror is responsible for ensuring that the questionnaire is completed and submitted, via email to Alisha Mercadante, Contracting Officer at alisha.m.mercadante@nasa.gov no later than the closing date of this solicitation designated.

The Offeror shall include a list of those to whom the questionnaires were sent, including name of individual, phone number, organization, and contract number. Offerors shall include in their proposal the written consent of their proposed significant subcontractors to allow the Government to discuss the subcontractors' past performance evaluation with the Offeror.

(End of provision)

A.8.2 PRICE

Price Volume Instructions.

The Federal Acquisition Regulation (FAR) requires Contracting Officers to purchase supplies and services from responsible sources at fair and reasonable prices.

(a) Instructions

Final monetary extensions in the Price Volume proposal should be expressed as the closest whole dollar amount, with cents omitted.

Duty charges, if any, shall be included in the price, regardless of whether or not duty-free certificates are obtained.

(b) Price Volume Proposal Format

(1) Exhibit 2 "Price Summary" – Summarizes the Prime Offeror's total evaluated price for the total anticipated period of performance that will be presented to the SSA.

(2) Exhibit 3 " CORE REQUIREMENTS FIRM FIXED PRICE - CLIN 0001 MARS TELECOMNICATION NETWORK (MTN)" - Summarizes the Prime Offeror Total Propose Price for the MTN (Core Requirement through vendor-defined milestone associated with readiness to ship). This amount shall be provided by filling in Contract Clause B.2 1852.216-78 Firm-Fixed-Price (DEC

2025) and returning with the Offer Volume.

Additionally, the offeror shall propose a schedule incentive for the Delivery of the MTN that is commensurate with the schedule risk, and complexity of the requirement. Offerors should ensure that the proposed incentive amount is meaningful and reflects the value to the Government of On-time delivery. This amount shall be provided by filling in Contract Clause B.4 Schedule Incentive

(3) Exhibit 4 - CORE REQUIREMENTS FIRM FIXED PRICE - CLIN 0001 MARS TELECOMNICATION NETWORK (MTN) MILESTONE PAYMENT EVENTS - In accordance with FAR 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services, and FAR 32.206, the Offeror may propose a milestone payment schedule consisting of no more than ten (10) milestone events; and the final milestone payment shall not be less than 10% of the total CLIN 1 price. The proposed milestone schedule shall be submitted using the format provided in Exhibit 3 and shall be included as shall be included in the Price volume. Additionally, the offeror shall complete Table 1 of the Contractor Negotiated Milestone Payment Schedule clause and shall be submitted in the Offer volume. Furthermore, each proposed milestone event must:

(i) Reflect the Contractor's customary commercial financing practice for contracts of similar scope, complexity, and value, as required by FAR 32.206(b)(1);

(ii) Be objectively identifiable and verifiable by the Government

(iii) Be directly related to the development, production, integration, testing, or delivery of the spacecraft under this contract; and

(iv) Government upon completion;

(v) Represent a meaningful and measurable work accomplishment that corresponds to actual progress toward final delivery;

(vi) Not result in any individual milestone payment that exceeds the value of work reasonably expected to be completed at that milestone event.

(4) Exhibit 5 - MTN SPECIAL STUDIES TIME AND MATERIAL (T&M) CLIN 0002 PRICING MODEL – Prime Offerors shall complete the TIME AND MATERIALS (T&M) PRICING MODEL. The Offeror shall propose ten (10) Offeror developed labor categories that shall be used exclusively for pricing the MTN Special Studies Tasks. The Government will not provide a mapping table. Offerors are responsible for developing and submitting its own labor category mapping. All rates shall be proposed as fully burdened T&M labor rates, inclusive of direct labor, indirect costs, overhead, G&A, FCCOM (if applicable), and profit/fee. Offerors shall propose the fully loaded rates for the Contract Years (CY) listed in the T&M Pricing Model. All assumptions used in the development of rates shall be clearly stated, and shall identify prime versus subcontractor labor (as applicable).

The Offeror shall apply its own proposed fully burdened labor rates to the Government-provided T&M Pricing Model. The Offeror shall rank its proposed labor rates from highest to lowest, and shall insert the ranked labor categories and rates into the designated fields within the pricing model. The pricing model includes a fixed Government designated labor hours that are identical for all Offerors and may not be modified. The resulting calculation will generate the Offeror's Total T&M Evaluated Price (CY1 – CY4). This amount is for evaluation purposes only and does not represent a commitment by the Government to order a specific labor mix or quantity.

Additionally, the fully-loaded direct labor rates, indirect Other Direct Cost (ODC) rates, and ODC that shall included in Attachment E as "not-to-exceed" bid rates. During contract performance, Offerors will be permitted to offer pricing for task orders to be placed at lower rates/percentage than are listed in this matrix in accordance with the “Task Ordering Procedure” and “Supplemental Task Ordering Procedures” clauses of this contract. The direct labor categories proposed must reflect all labor categories and levels within each individual labor category anticipated to perform the IDIQ requirements of the MTN Special Studies Task Order and should range from entry level to the most senior level, as applicable.

(5) Exhibit 6 - OPTION FOR INCREASE QUANTITY FIRM FIXED PRICE - CLIN 0003 MTN LAUNCH, INTEGRATION & ORBIT INSERTION ” - Summarizes the Prime Offeror Total Propose Price for the MTN Launch, Integration & Orbit Insertion into Mars. This amount shall be provided by filling in Contract Clause Schedule Incentive (Commissioning) (Commissioning)

Additionally, the offeror shall propose a schedule incentive for the MTN Launch, Integration & Orbit Insertion that is commensurate with the schedule risk, and complexity of the requirement. Offerors should ensure that the proposed incentive amount is meaningful and reflects the value to the Government of On-time delivery.

(6) Exhibit 7 - OPTION FOR INCREASE QUANTITY FIRM FIXED PRICE - CLIN 0003 MTN LAUNCH, INTEGRATION & ORBIT INSERTION MILESTONE PAYMENT EVENTS” Additionally, The Government additionally, expects offerors to propose a schedule incentive for the MTN that is commensurate with the schedule risk, and complexity of the requirement. Offerors should ensure that any proposed incentive amount is meaningful and reflects the value to the Government of On-time delivery required to achieve it. Terms for Financing of Purchases of Commercial Products and Commercial Services, and FAR 32.206, the Offeror may propose a milestone payment schedule consisting of no more than five (5) milestone events. The final milestone payment shall not be less than 10% of the total CLIN 3 price. The proposed milestone schedule shall be submitted using the format provided in Exhibit 5 and shall be included as shall be included in the Price volume. Additionally, the offeror shall complete Table 2 of the Contractor Negotiated Milestone Payment Schedule clause and shall be submitted in the Offer volume.

Exhibit 8 – CLINS 0004- 0008) MTN – MISSION OPERATIONS)” - Summarizes the Prime Offeror Total Propose Price for the MTN (Mission Operations for a total of five (5) years. This amount shall be provided by filling in Contract Clause GSFC 52.217-91. Additionally, the offeror shall propose a performance incentive for the end of each option year commensurate with the performance risk, and complexity of the requirement. Offerors should ensure that the proposed incentive amount is meaningful and reflects the value to the Government of mission operations. This amount shall be provided by filling the Performance Incentive (Mission Operations) clause.

(c) Basis of Estimate:

The Offeror shall provide a concise Basis of Estimates (BOE) written narrative that identifies the methodology used to establish the proposed price.

The narrative shall identify assumptions upon which the proposed price is based; describe how the proposed price accounts for the Schedule Performance Incentive for the MTN CORE & the MTN LAUNCH SERVICES, INTEGRATION and ORBIT INSERTION; and include a brief statement affirming that the proposed price is consistent with current commercial market pricing for comparable systems and reflects an executable approach from a technical and schedule perspective.

The offeror shall provide supporting documentation, such as commercial catalog pricing, prior commercial sales data (redacted as necessary), or market comparable, sufficient to allow the Government to determine price reasonableness.

Provide a summary-level breakdown of the proposed price by major milestone accounting for:

- major deliveries such as spacecraft bus, launch vehicle, communications payload, ground support equipment, mission operations center.

- major mission activities such as system design and analysis; integration, assembly and test; launch support services; and project management.

Offerors are advised that this breakdown is for the purpose of supporting price reasonableness and does not constitute certified cost or pricing data.

Identify all material assumptions upon which the proposed price is based, including but not limited to: spacecraft configuration; Government-Furnished Equipment; launch vehicle responsibility; and frequency coordination responsibility.

(End of provision)

A.9 NOTICE OF POTENTIAL ORGANIZATIONAL CONFLICTS OF INTEREST. (OCT 2021)

(a) The Contracting Officer (CO) has determined that this acquisition may give rise to an Organizational Conflict of Interest (OCI). Accordingly, the attention of prospective Offerors is invited to Federal Acquisition Regulation (FAR) Subpart 9.5, Organizational Conflicts of Interest. Offerors are required to submit an acceptable OCI Plan in accordance with the requirements of the Data Requirements Description (Attachment H. 1) and the OCI Avoidance Plan (Attachment K).

(b) Paragraphs (b)(1) – (3) below contain brief descriptions of each type of potential OCI and the reason it creates a concern. The Government has identified specific actual or potential conflicts related to this contract in paragraph (c) below.

(1) Unequal Access to Information: An OCI due to “Unequal Access to Information” is created when a Contractor has access to nonpublic information that may provide the firm an unfair competitive advantage to compete against other companies, likely in the context of a later competition for a future Government contract.

Biased Ground Rules: An OCI due to “Biased Ground Rules” is created when a firm, as part of its performance of a Government contract, has in some sense set the ground rules for another Government contract by, for example, writing the Statement of Work or the specifications. In these “Biased Ground Rules” cases, the primary concern is that the firm could skew the future competition, whether intentionally or not, in favor of itself. These situations may also involve concerns that a firm, by virtue of its special knowledge of the Agency’s future requirements, would have an unfair advantage in the competition for those requirements. Thus, both principles of bias and unfair competitive advantage may be present under certain circumstances.

(2) Impaired Objectivity: An OCI due to “Impaired Objectivity” is created when a Contractor, as part of its performance of a Government contract, has the opportunity to take action, or participate in contract activities, under circumstances where the Contractor’s judgment or objectivity in performing the requirements may be impaired direct or indirect affiliation or a competitive posture. Under such circumstances, the Contractor could positively impact its own interests or those of a related/affiliated company or could negatively impact the financial interests of a competitor entity. This conflict contains two elements – the use of subjective judgment by the Contractor and a direct or indirect financial interest in the outcome of performance.

Contractor activities or actions having the potential to result in an impaired objectivity OCI include the following: participating in reviewing third-party proposals; other reviewing, evaluating, analyzing or testing of services, technology concepts, designs, prototypes, software or hardware of the Contractor, an affiliate, or a third party; or making recommendations or decisions that could benefit same.

The nature of the potential OCI(s) are:

(3) Unequal Access to Information. There is a concern that the successful Contractor or its proposed Subcontractor(s), as part of their performance of a Government contract, obtains access to another Contractor's proprietary, business confidential, or financial data and/or non-public information, which may provide the firm an unfair competitive advantage in a future competition.

(4) Biased Ground Rules - There is a concern that the successful contractor or its proposed subcontractor(s), as part of its performance of a government contract, has in some sense set the ground rules for another Government contract and could skew future competitions, whether intentionally or not, to their advantage. By virtue of their special knowledge of the agency's future requirements, the contractor or its proposed subcontractors would have an unfair advantage in the competition for those requirements.

(c) The proposed OCI Plan shall be consistent with all other areas of the proposal. The proposed OCI Plan is not page limited and shall be included as a separate proposal Attachment.

(End of provision)

52.212-2 Evaluation - Commercial Products and Commercial Services (NOV 2025) (Deviation)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Technical Proposal and Past Performance are significantly more important than Price.

As Individual Factor, Technical Proposal is significantly more important than Price, and Price is less important than Past Performance.

(a)(1)TECHNICAL PROPOPSAL

(a)(1)(1) WRITTEN TECHNICAL PROPOSAL (PWS)

The Offeror proposed MTN Performance Work Statement (PWS) will be evaluated for feasibility, effectiveness, reasonableness, completeness, and efficiency in meeting the Government's objectives. The Offeror's inclusion of all Government-defined mandatory work statements from Enclosure 1, Draft Performance Work Statement (either verbatim or with justified modifications that meet the intent) will be assessed for reasonableness, completeness, and effectiveness.

(a)(1)(2)ORAL TECHNICAL PROPOSAL (TEAMS)

(1) The proposed system's capability to satisfy threshold requirements as articulated in the MTN Objectives and Requirements Document (Attachment B) will be evaluated for reasonableness and efficiency. completeness, feasibility, effectiveness, reasonableness and efficiency. The descriptions of system capabilities articulated in artifacts such as block diagrams; performance analyses, budgets, and margins; design attributes such as fault tolerance, parts selection, design and construction standards, and hardware heritage/maturity; mission design attributes such as launch vehicle identification and integration, ground operations (including DSN integration/compatibility, MOC, and scheduling interfaces), mission timeline, transfer and orbiter regime, critical events, and relay service performance contacts; and any other key system attributes that contribute to projected system performance will be evaluated for feasibility and

effectiveness. Effective technical risk identification, characterization, and mitigation will be a key indicator of technical maturity. Depth, rigor, and proven efficacy of the verification and validation approach maps directly into likelihood of requirements satisfaction will be assessed for reasonableness.

(2) The system capabilities exceeding the threshold requirements and approaching or exceeding goal requirements will be evaluated for feasibility, effectiveness, reasonableness, and efficiency. Any proposed system capabilities exceeding threshold requirements will also need to be captured in the proposed MTN Performance Work Statement and will be part of the resulting contract.

(3) The realism of the proposed project schedule including major reviews, key decision dates, procurement of long-lead items (including identification of all long-lead items and credible estimates (e.g. in-hand quotes) for lead-time), fabrication, assembly, test & integration, launch, and commissioning activities will be assess for reasonableness.

(4) The Offeror proposed payments schedule will be assessed for effectiveness and reasonableness. Payments weighted toward significant milestones (e.g., Pre-ship review, Launch, Operations, etc.) demonstrate technical feasibility and commitment. Conversely, front-loaded distributions of payments demonstrate lower levels of confidence. Milestones will be evaluated for the technical depth and maturity of the content, with hardware and results orientated milestones preferred to reporting and reviews.

(5) The management and technical communications approach will be evaluated for effectiveness, reasonableness and efficiency.

(6) The proposed system interoperability will be evaluated for feasibility, reasonableness, and effectiveness,.

(7) The proposed system extensibility will be evaluated for completeness, feasibility, effectiveness, reasonableness, and efficiency.

(a)(1)(3) Additional Written Documentation and Information

(1) The proposed RF link budget will be evaluated for completeness, feasibility, effectiveness, and reasonableness. Additionally, the trajectory and vehicle performance parameters will be evaluated for feasibility and effectiveness.

(2) The Commercial Architecture Security Questionnaire (CASQ) response will be evaluated for completeness, effectiveness, and reasonableness.

(3) SMALL BUSINESS CONSIDERATION

- The Government will evaluate the extent to which the work performed by a small business subcontractor(s) is "high technology" work as defined in NFS 1819.001. NASA also will evaluate the extent of commitment to use the subcontractor(s) (enforceable vs. non-enforceable commitments.

- The Government will evaluate the Offeror's participation and/or proposed participation in NASA's Mentor Protégé program and their planned commitment to enter into mentor-protégé agreements to provide appropriate developmental assistance to enhance the protégé's ability to perform successfully under contracts and/or subcontracts.

Technical Proposals will be rated using the following adjectival ratings/definitions.

Adjectival Ratings	*Definition*
Outstanding	A comprehensive and thorough proposal of exceptional merit; Proposal exceeds requirements in a way that will be advantageous to the Government during contract performance. Multiple strengths with no weaknesses or deficiencies; very low risk.
Very Good	A proposal that meets requirements and demonstrates over-all competence and understanding; at least one strength; only minor weaknesses, no deficiencies; very low to low risk.
Good	A proposal that meets requirements and shows a reasonable sounds response; strengths offset weaknesses, no deficiencies; low to moderate risk.
Marginal	A proposal that partially meets requirements. Weaknesses outbalance any strengths; moderate to high risk.
Unacceptable	A proposal fails to meet requirements and demonstrates a lack of overall competence; one or more deficiencies exist and proposal would require a major revision to correct; very high risk.

(a)(2) PAST PERFORMANCE

An offeror's past performance will be evaluated based on the evaluation criteria in this provision.

All past performance references must meet the "recent" and minimum average annual cost/fee expenditures criteria provided below for both prime contractor references and significant subcontractor references in order to be evaluated.

For purposes of past performance, the term "Offeror" refers to a prime contractor and its significant subcontractors. Accordingly, the past performance of significant(s) subcontractors shall also be evaluated and attributed to the Offeror. The past performance of a significant subcontractor will be compared to the work proposed to be performed by that subcontractor, and weighted accordingly in assigning the overall past performance adjectival rating to the Offeror. The past performance of the prime contractor will be weighted more heavily than any significant subcontractor or combination of significant subcontractors in the overall past performance evaluation.

A "recent" contract is a contract that is ongoing or completed less than 10 years prior to the issuance of this RFP. Contracts completed more than 10 years prior to issuance of this RFP will not be considered recent and will not be considered or evaluated.

A "relevant" contract depends on the size and content of the contract with respect to this acquisition.

For a prime contractor's contract reference(s) to be considered at least minimally "relevant", it must meet/exceed an average annual cost/fee incurred of at least $20M.

A proposed significant subcontractor for this procurement is defined as any proposed subcontractor that is estimated to meet/exceed an average annual cost/fee of $10M.Note, the definition of significant subcontractor for the past performance evaluation may be different than for the cost evaluation.

For a significant subcontractor's contract reference(s) to be considered at least minimally "relevant", it must meet/exceed an average annual cost/fee incurred of at least 25% of that portion of this procurement that the subcontractor is proposed (or estimated) to perform.

If the contract is deemed recent and meets the above minimum average annual cost/fee expenditures criteria, the Government will then determine the degree of relevance - i.e., level of pertinence - of the contract based on size and content. Content is more important than size in the evaluation of relevance. The term "content" means the type and complexity of services, work, or supplies, in comparison to the requirements of this solicitation. The Government may consider past quantities and periods of performance in evaluating overall relevance.

The performance evaluation will be based primarily on customer satisfaction and/or contract data in meeting technical, schedule, cost, and management requirements. Additional performance factors may include contract administration, occupational health, safety, security, subcontracting plan goals and small disadvantaged business participation targets, if applicable, and other contract requirements.

The Government may review and consider past performance information on other contracts that it is aware of or that are made available from other sources and inquiries with previous customers. These contracts (if any) must meet the above "recent" and minimum average annual cost/fee expenditures criteria to be evaluated.

As part of the past performance evaluation, the Government may attribute the experience or past performance of a parent or affiliated or predecessor company (including Joint Venture prime partner companies and/or a parent or affiliated company that is being otherwise proposed as a subcontractor on this effort) to the proposed prime contractor and/or significant subcontractor(s) where the proposal demonstrates that the resources of the parent or affiliate or predecessor company will affect the performance of the proposed prime contractor and/or significant subcontractor(s). The Government will take into consideration whether the resources of the parent or affiliate or predecessor company (its workforce, management, facilities or other resources) will be provided or relied upon for contract performance such that the parent or affiliate will have meaningful involvement in contract performance. These contracts (if any) must meet the above "recent" and minimum average annual cost/fee expenditures criteria to be evaluated.

An Offeror shall not be rated favorably or unfavorably if the offeror does not have a record of "recent" and "relevant" past performance or if a record of past performance is unavailable. In such cases the offeror will receive a "Neutral" rating. However, an offeror with favorable, recent, and relevant past performance that meets the minimum average annual cost/fee expenditures indicated above may be considered more favorably than an offeror with no relevant past performance information.

The Government will consider an Offeror's explanation of any problems encountered on any identified contracts, and any corrective actions taken by the offeror.

The overall confidence rating assigned to an Offeror's Past Performance (see below) will reflect a subjective evaluation of the information contained in the oral presentation, if applicable; written narrative; past performance evaluation input provided through customer questionnaires; and other references, if any, that the Government may contact for additional past performance information.

The Government will assign an adjectival confidence rating based on the offeror's demonstrated record of performance. An Offeror will not be rated favorably or unfavorably if the offeror does not have a record of "recent" and "relevant" past performance or if a record of past performance is unavailable. In such cases the offeror will receive a "Neutral" rating.

Adjectival Ratings	***Definitions***
Excellent	Performance consistently exceeded contractual requirements in quality, schedule, and management. Demonstrated proactive risk management and delivered significant benefits to the customer.
Very Good	Performance met all contractual requirements and exceeded some. Minor issues were promptly resolved without impact to overall performance.
Good	Performance met contractual requirements with only minor issues that were effectively corrected. No significant weaknesses noted.
Fair	Performance met most requirements but had recurring issues requiring Government oversight. Corrective actions were only partially effective.
Poor	Performance failed to meet many requirements; significant problems persisted and corrective actions were ineffective.

(a)(3) Price

The Total Proposed Firm Fixed Price (including all options) will be evaluated and presented to the SSA.

This analysis is done to ensure that a "fair and reasonable" price is paid by the Government. However, the analysis is not intended to be protective of the offeror.

The Price evaluation factor will include an evaluation of the following:

The Government will evaluate the proposed fixed price for the MTN CORE Requirements, the Launch Services, Integration and Orbit Insertion, the 5 Years of Mission Operations Relay and the T&M Pricing Model and the proposed Fully Loaded Fixed Rates for the IDIQ Services submitted with completed Attachment E , IDIQ Matrix.

The total evaluated price will be presented to the Selecting Official. All price analysis will be performed at the contract level.

(a) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(b) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.216-22 Indefinite Quantity. (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after *one year beyond the end of the contract's effective ordering period.*

(End of clause)

52.252-2 Clauses Incorporated by Reference. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

For Federal Acquisition Regulation (FAR) clauses, see https://www.acquisition.gov/browse/index/far For NASA FAR Supplement (NFS) clauses, see http://www.hq.nasa.gov/office/procurement/regs/NFS.pdf
or FAR Overhaul clauses, see https://www.acquisition.gov/far-overhaul

(End of clause)

NFS Clauses Incorporated by Full Text

1852.216-80 Task Ordering Procedure (DEC 2025) (Deviation)

(a) Only the contracting officer may issue task orders to the contractor, providing specific authorization or direction to perform work within the scope of the contract and as specified in the schedule. The contractor may incur costs under this contract in performance of task orders and task order modifications issued in accordance with this clause. No other costs are authorized unless otherwise specified in the contract or expressly authorized by the contracting officer.

(b) Prior to issuing a task order, the contracting officer shall provide the contractor with the following data:

(1) A functional description of the work identifying the objectives or results desired from the contemplated task order.

(2) Proposed performance standards to be used as criteria for determining whether the work requirements have been met.

(3) A request for a task plan from the contractor to include the technical approach, period of performance, appropriate cost information, and any other information required to determine the reasonableness of the contractor's proposal.

(c) Within *TBP* calendar days after receipt of the contracting officer's request, the contractor shall submit a task plan conforming to the request.

(1) After review and any necessary discussions, the contracting officer may issue a task order to the contractor containing, as a minimum, the following:

(2) Date of the order.

(3) Contract number and order number.

(4) Functional description of the work identifying the objectives or results desired from the task order,
including special instructions or other information necessary for performance of the task.

(5) Performance standards, and where appropriate, quality assurance standards.

(6) Maximum dollar amount authorized (cost and fee or price). This includes allocation of award fee among award fee periods, if applicable.

(7) Any other resources (travel, materials, equipment, facilities, etc.) authorized.

(8) Delivery/performance schedule including start and end dates.

(9) If contract funding is by individual task order, accounting and appropriation data.

(d) The contractor shall provide acknowledgment of receipt to the contracting officer within 1 calendar day after receipt of the task order.

(e) If time constraints do not permit issuance of a fully defined task order in accordance with the procedures described in paragraphs (a) through (d), a task order which includes a ceiling price may be issued.

(f) The contracting officer may amend tasks in the same manner in which they were issued.

(g) In the event of a conflict between the requirements of the task order and the contractor's approved task plan, the task order shall prevail.

(End of clause)

52.227-14 Rights in Data-General. (MAY 2014) (ALT II) (DEC 2007) (ALT III) (DEC 2007) AS MODIFIED BY NFS 1852.227-14 (APR 2015)

(a) Definitions. As used in this clause Computer database or "database means" a collection of recorded information in a form capable of, and for the purpose of, being stored in, processed, and operated on by a computer. The term does not include computer software.

Computer software-

(1) Means

(i) Computer programs that comprise a series of instructions, rules, routines, or statements, regardless of the media in which recorded, that allow or cause a computer to perform a specific operation or series of operations; and

(ii) Recorded information comprising source code listings, design details, algorithms, processes, flow charts, formulas, and related material that would enable the computer program to be produced, created, or compiled.

(2) Does not include computer databases or computer software documentation. Computer software documentation means owner’s manuals, user’s manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

Data means recorded information, regardless of form or the media on which it may be recorded.

The term includes technical data and computer software. The term does not include information incidental to contract administration, such as financial, administrative, cost or pricing, or management information.

Form, fit, and function data means data relating to items, components, or processes that are sufficient to enable physical and functional interchangeability, and data identifying source, size, configuration, mating and attachment characteristics, functional characteristics, and performance requirements.

For computer software it means data identifying source, functional characteristics, and performance requirements but specifically excludes the source code, algorithms, processes, formulas, and flow charts of the software.

Limited rights means the rights of the Government in limited rights data as set forth in the Limited Rights Notice of paragraph (g)(3) if included in this clause.

Limited rights data means data, other than computer software, that embody trade secrets or are commercial or financial and confidential or privileged, to the extent that such data pertain to items, components, or processes developed at private expense, including minor modifications.

Restricted computer software means computer software developed at private expense and that is a trade secret, is commercial or financial and confidential or privileged, or is copyrighted computer software, including minor modifications of the computer software.

Restricted rights, as used in this clause, means the rights of the Government in restricted computer software, as set forth in a Restricted Rights Notice of paragraph (g) if included in this clause, or as otherwise may be provided in a collateral agreement incorporated in and made part of this contract, including minor modifications of such computer software.

Technical data means recorded information (regardless of the form or method of the recording) of a scientific or technical nature (including computer databases and computer software documentation). This term does not include computer software or financial, administrative, cost or pricing, or management data or other information incidental to contract administration. The term includes recorded information of a scientific or technical nature that is included in computer databases (See 41 U.S.C. 116).

Unlimited rights means the rights of the Government to use, disclose, reproduce, prepare derivative works,

distribute copies to the public, and perform publicly and display publicly, in any manner and for any purpose, and to have or permit others to do so.

(b) Allocation of rights.

(1) Except as provided in paragraph (c) of this clause, the Government shall have unlimited rights in-

(i) Data first produced in the performance of this contract;

(ii) Form, fit, and function data delivered under this contract;

(iii) Data delivered under this contract (except for restricted computer software) that constitute manuals or instructional and training material for installation, operation, or routine maintenance and repair of items, components, or processes delivered or furnished for use under this contract; and

(iv) All other data delivered under this contract unless provided otherwise for limited rights data or restricted computer software in accordance with paragraph (g) of this clause.

(2) The Contractor shall have the right to-

(i) Assert copyright in data first produced in the performance of this contract to the extent provided in paragraph (c)(1) of this clause;

(ii) Use, release to others, reproduce, distribute, or publish any data first produced or specifically used by the Contractor in the performance of this contract, unless provided otherwise in paragraph (d) of this clause;

(iii) Substantiate the use of, add, or correct limited rights, restricted rights, or copyright notices and to take other appropriate action, in accordance with paragraphs (e) and (f) of this clause; and

(iv) Protect from unauthorized disclosure and use those data that are limited rights data or restricted computer software to the extent provided in paragraph (g) of this clause.

(c) Copyright-

(1) Data first produced in the performance of this contract.

(i) Unless provided otherwise in paragraph (d) of this clause, the Contractor may, without prior approval of the Contracting Officer, assert copyright in scientific and technical articles based on or containing data first produced in the performance of this contract and published in academic, technical or professional journals, symposia proceedings, or similar works. The prior, express written permission of the Contracting Officer is required to assert copyright in all other data first produced in the performance of this contract.

(ii) When authorized to assert copyright to the data, the Contractor shall affix the applicable copyright notices of 17 U.S.C. 401 or 402, and an acknowledgment of Government sponsorship (including contract number).

(iii) For data other than computer software, the Contractor grants to the Government, and others acting on its behalf, a paid-up, nonexclusive, irrevocable, worldwide license in such copyrighted data to reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly by or on behalf of the Government. For computer software, the Contractor grants to the Government, and others acting on its behalf, a paid-up, nonexclusive, irrevocable, worldwide license in such copyrighted computer software to reproduce, prepare derivative works, and perform publicly and display publicly (but not to distribute copies to the public) by or on behalf of the Government.

(iv) The contractor shall mark each scientific and technical article based on or containing data first produced in the performance of this contract and submitted for publication in academic, technical or professional journals, symposia proceedings or similar works with a notice, similar in all material respects to the following, on the cover or first page of the article, reflecting the Government's non- exclusive worldwide license in the copyright.

Government Rights Notice

This work was authored by employees of TBP under Contract No. TBD with the National Aeronautics and

Space Administration. The United States Government retains and the publisher, by accepting the article for publication, acknowledges that the United States Government retains a non-exclusive, paid-up, irrevocable, worldwide license to reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly, or allow others to do so, for United States Government purposes. All other rights are reserved by the copyright owner.

(End of notice) (End of addition)

The contractor shall mark each scientific and technical article based on or containing data first produced in the performance of this contract and submitted for publication in academic, technical or professional journals, symposia proceedings or similar works with a notice, similar in all material respects to the following, on the cover or first page of the article, reflecting the Government's non- exclusive worldwide license in the copyright.

Government Rights Notice

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(End of notice) (End of addition)

(2) Data not first produced in the performance of this contract. The Contractor shall not, without the prior written permission of the Contracting Officer, incorporate in data delivered under this contract any data not first produced in the performance of this contract unless the Contractor-

(i) Identifies the data; and

(ii) Grants to the Government, or acquires on its behalf, a license of the same scope as set forth in paragraph (c)(1) of this clause or, if such data are restricted computer software, the Government shall acquire a copyright license as set forth in paragraph (g)(4) of this clause (if included in this contract) or as otherwise provided in a collateral agreement incorporated in or made part of this contract.

(3) Removal of copyright notices. The Government will not remove any authorized copyright notices placed on data pursuant to this paragraph (c), and will include such notices on all reproductions of the data.

(d) Release, publication, and use of data. The Contractor shall have the right to use, release to others, reproduce, distribute, or publish any data first produced or specifically used by the Contractor in the performance of this contract, except-

(1) As prohibited by Federal law or regulation (e.g., export control or national security laws or regulations);

(2) As expressly set forth in this contract; or

(3) If the Contractor receives or is given access to data necessary for the performance of this contract that contain restrictive markings, the Contractor shall treat the data in accordance with such markings unless specifically authorized otherwise in writing by the Contracting Officer.

(4)(i) The Contractor agrees not to assert claim to copyright, publish or release to others any computer software first produced in the performance of this contract unless the Contracting Officer authorizes through a contract modification.

(ii) The prohibition on "release to others," as set forth in (d)(4)(i), does not prohibit release to another Federal Agency for its use or its contractors' use, as long as any such release is consistent with any restrictive markings on the software. Any restrictive markings on the software shall take precedence over the aforementioned release. Any release to a Federal Agency shall limit use to the Federal Agency or its contractors for Government purposes only. Any other release shall require the Contracting Officer's prior written permission.

(iii) If the Government desires to obtain copyright in computer software first produced in the performance of this contract and permission has not been granted as set forth in paragraph (d)(4)(i) of this clause, the Contracting Officer may direct the contractor to assert, or authorize the assertion of, a claim to copyright in such data and to assign, or obtain the assignment of, such copyright to the Government or its designated assignee.

(End of addition)

(e) Unauthorized marking of data.

(1) Notwithstanding any other provisions of this contract concerning inspection or acceptance, if any data delivered under this contract are marked with the notices specified in paragraph (g)(3) or (g) (4) if included in this clause, and use of the notices is not authorized by this clause, or if the data bears any other restrictive or limiting markings not authorized by this contract, the Contracting Officer may at any time either return the data to the Contractor, or cancel or ignore the markings. However, pursuant to 41 U.S.C. 4703, the following procedures shall apply prior to canceling or ignoring the markings.

(i) The Contracting Officer will make written inquiry to the Contractor affording the Contractor 60 days from receipt of the inquiry to provide written justification to substantiate the propriety of the markings;

(ii) If the Contractor fails to respond or fails to provide written justification to substantiate the propriety of the markings within the 60-day period (or a longer time approved in writing by the Contracting Officer for good cause shown), the Government shall have the right to cancel or ignore the markings at any time after said period and the data will no longer be made subject to any disclosure prohibitions.

(iii) If the Contractor provides written justification to substantiate the propriety of the markings within the period set in paragraph (e)(1)(i) of this clause, the Contracting Officer will consider such written justification and determine whether or not the markings are to be cancelled or ignored. If the Contracting Officer determines that the markings are authorized, the Contractor will be so notified in writing. If the Contracting Officer determines, with concurrence of the head of the contracting activity, that the markings are not authorized, the Contracting Officer will furnish the Contractor a written determination, which determination will become the final agency decision regarding the appropriateness of the markings unless the Contractor files suit in a court of competent jurisdiction within 90 days of receipt of the Contracting Officer's decision. The Government will continue to abide by the markings under this paragraph (e)(1)(iii) until final resolution of the matter either by the Contracting Officer's determination becoming final (in which instance the Government will thereafter have the right to cancel or ignore the markings at any time and the data will no longer be made subject to any disclosure prohibitions), or by final disposition of the matter by court decision if suit is filed.

(2) The time limits in the procedures set forth in paragraph (e)(1) of this clause may be modified in accordance with agency regulations implementing the Freedom of Information Act (5 U.S.C. 552) if necessary to respond to a request thereunder.

(3) Except to the extent the Government's action occurs as the result of final disposition of the matter by a court of competent jurisdiction, the Contractor is not precluded by paragraph (e) of the clause from bringing a claim, in accordance with the Disputes clause of this contract, that may arise as the result of the Government removing or ignoring authorized markings on data delivered under this contract.

(f) Omitted or incorrect markings.

(1) Data delivered to the Government without any restrictive markings shall be deemed to have been furnished with unlimited rights. The Government is not liable for the disclosure, use, or reproduction of such data.

(2) If the unmarked data has not been disclosed without restriction outside the Government, the Contractor may request, within 6 months (or a longer time approved by the Contracting Officer in writing for good cause shown) after delivery of the data, permission to have authorized notices placed on the data at the Contractor's expense. The Contracting Officer may agree to do so if the Contractor-

(i) Identifies the data to which the omitted notice is to be applied;

(ii) Demonstrates that the omission of the notice was inadvertent;

(iii) Establishes that the proposed notice is authorized; and

(iv) Acknowledges that the Government has no liability for the disclosure, use, or reproduction of any data made prior to the addition of the notice or resulting from the omission of the notice.

(3) If data has been marked with an incorrect notice, the Contracting Officer may-

(i) Permit correction of the notice at the Contractor's expense if the Contractor identifies the data and

demonstrates that the correct notice is authorized; or

(ii) Correct any incorrect notices.

(g) Protection of limited rights data and restricted computer software.

(1) The Contractor may withhold from delivery qualifying limited rights data or restricted computer software

that are not data identified in paragraphs (b)(1)(i), (ii), and (iii) of this clause. As a condition to this withholding, the Contractor shall-

(i) Identify the data being withheld; and

(ii) Furnish form, fit, and function data instead.

(2) Limited rights data that are formatted as a computer database for delivery to the Government shall be treated as limited rights data and not restricted computer software.

(3) Notwithstanding paragraph (g)(1) of this clause, the contract may identify and specify the delivery of limited rights data, or the Contracting Officer may require by written request the delivery of limited rights data that has been withheld or would otherwise be entitled to be withheld. If delivery of that data is required, the Contractor shall affix the following "Limited Rights Notice" to the data and the Government will treat the data, subject to the provisions of paragraphs (e) and (f) of this clause, in accordance with the notice:

Limited Rights Notice (Dec 2007)

(a) These data are submitted with limited rights under TBD. These data may be reproduced and used by the Government with the express limitation that they will not, without written permission of the Contractor, be used for purposes of manufacture nor disclosed outside the Government; except that the Government may disclose these data outside the Government for the following purposes, if any; provided that the Government makes such disclosure subject to prohibition against further use and disclosure: Use (except for manufacture) by support service contractors.

(ii) Evaluation by nongovernment evaluators.

(iii) Use (except for manufacture) by other contractors participating in the Government's program of which the specific contract is a part.

(iv) Repair or overhaul work.

(v) Release to a foreign government, or its instrumentalities, if required to serve the interests of the U.S.

Government, for information or evaluation, or for emergency repair or overhaul work by the foreign government.

(b) This notice shall be marked on any reproduction of these data, in whole or in part.

(End of notice)

(g)(4)(i) Notwithstanding paragraph (g)(1) of this clause, the contract may identify and specify the delivery of restricted computer software, or the Contracting Officer may require by written request the delivery of restricted computer software that has been withheld or would otherwise be entitled to be withheld. If delivery of that computer software is required, the Contractor shall affix the following "Restricted Rights Notice" to the computer software and the Government will treat the computer software, subject to paragraphs (e) and (f) of this clause, in accordance with the notice:

Restricted Rights Notice (Dec 2007)

(a) This computer software is submitted with restricted rights under TBD, if appropriate). It may not be used, reproduced, or disclosed by the Government except as provided in paragraph

(b) of this notice or as otherwise expressly stated in the contract.

(b) This computer software may be-

(1) Used or copied for use with the computer(s) for which it was acquired, including use at any Government installation to which the computer(s) may be transferred;

(2) Used or copied for use with a backup computer if any computer for which it was acquired is inoperative;

(3) Reproduced for safekeeping (archives) or backup purposes;

(4) Modified, adapted, or combined with other computer software, provided that the modified, adapted, or combined portions of the derivative software incorporating any of the delivered, restricted computer software shall be subject to the same restricted rights;

(5) Disclosed to and reproduced for use by support service Contractors or their subcontractors in accordance with paragraphs (b)(1) through (4) of this notice; and

(6) Used or copied for use with a replacement computer.

(c) Notwithstanding the foregoing, if this computer software is copyrighted computer software, it is licensed to the Government with the minimum rights set forth in paragraph (b) of this notice.

(d) Any other rights or limitations regarding the use, duplication, or disclosure of this computer software are to be expressly stated in, or incorporated in, the contract.

(e) This notice shall be marked on any reproduction of this computer software, in whole or in part.

(End of notice)

(ii) Where it is impractical to include the Restricted Rights Notice on restricted computer software, the following short-form notice may be used instead:

Restricted Rights Notice Short Form (Jun 1987)

Use, reproduction, or disclosure is subject to restrictions set forth in TBD with __TBD__.

(End of notice)

(iii) If restricted computer software is delivered with the copyright notice of 17 U.S.C. 401, it will be presumed to be licensed to the Government without disclosure prohibitions, with the minimum rights set forth in paragraph (b) of this clause.

(h) Subcontracting. The Contractor shall obtain from its subcontractors all data and rights therein necessary to fulfill the Contractor's obligations to the Government under this contract. If a subcontractor refuses to accept terms affording the Government those rights, the Contractor shall promptly notify the Contracting Officer of the refusal and shall not proceed with the subcontract award without authorization in writing from the Contracting Officer.

(i) Relationship to patents or other rights. Nothing contained in this clause shall imply a license to the Government under any patent or be construed as affecting the scope of any license or other right otherwise granted to the Government.

(End of clause)

1852.240-75 Security Classification Requirements (SEP 2025) (Deviation)

Performance under this contract will involve access to and/or generation of classified information, work in a security area, or both, up to the level of *TBD*. See Federal Acquisition Regulation clause 52.240-92 in this contract and DD Form 254, Contract Security Classification Specification, Attachment *TBD*.

1852.240-76 Security Requirements for Unclassified Information Technology Resources (JAN 2026) (Deviation)

(a) The contractor must protect the confidentiality, integrity, and availability of NASA Electronic Information and IT resources and protect NASA Electronic Information from unauthorized disclosure.

(b) This clause is applicable to all NASA contractors and sub-contractors that process, manage, access, or store unclassified electronic information, to include Sensitive But Unclassified (SBU) information or Controlled Unclassified Information (CUI), for NASA in support of NASA's missions, programs, projects and/or institutional requirements. Applicable requirements, regulations, policies, and guidelines are identified in the contract. Specific implementation requirements will be addressed in the contract data requirements description. For policy information considered sensitive, the documents will be identified as such in the contract and made available through the Contracting Officer.

(c) Definitions.

(1) IT resources means any hardware or software or interconnected system or subsystem of equipment, that is used to process, manage, access, or store electronic information.

(2) NASA Electronic Information is any data (as defined in the Rights in Data clause of this contract) or information (including information incidental to contract administration, such as financial, administrative, cost or pricing, or management information) that is processed, managed, accessed or stored on an IT system(s) in the performance of a NASA contract.

(3) Federal Information System (FIS). The term "Federal information system" means an information system

used or operated by an executive agency, by a contractor of an executive agency, or by another organization

on behalf of an executive agency (40 U.S.C. 11331)

(4) Information System Security Plan (i.e., System Security Plan, IT Security Plan, or Security Plan) means a formal document that provides an overview of the security requirements for an information system and describes the security controls in place or planned for meeting those requirements.

(d) Contractors that process, store, or transmit federal information or operate information systems on behalf of the federal government must meet the same security and privacy requirements as federal agencies. The contractor must develop and submit an Information Security Plan when operating a FIS or maintaining or collecting information for the purpose of processing, storing, or transmitting federal information, and those activities are not incidental to providing a service or product to the Government. Such FIS plans are to be accomplished in accordance with the current version of NASA Procedural Requirements (NPR) 2810.1 Security of Information and Information Systems. The security plan and Authorization to Operate (ATO) must be in place before any system may operate in the NASA environment. When the contractor does not operate a FIS but receives, process, transmits, or stores NASA information in performance of the contract, the contractor must attest to the ability to secure NASA information within its own IT/information system.

(e) The contractor must afford Government access to the Contractor's and subcontractors' facilities, installations, operations, documentation, databases, and personnel used in performance of the contract. Access must be provided to the extent required to carry out a program of IT inspection (to include vulnerability testing), investigation and audit to safeguard against threats and hazards to the integrity, availability, and confidentiality of NASA Electronic Information or to the function of IT systems operated on behalf of NASA, and to preserve evidence of computer crime. The contractor must report immediately upon notification any incident involving NASA information on non-federal (contractor) systems.

(f) The contractor must provide the name and contact information for the contractor’s IT Security point of contact during phase in of the contract. Contractor employees requiring physical access to NASA facilities or electronic access to NASA systems must complete the NASA Cybersecurity and Privacy Awareness Training.

(g) The contractor must insert this clause, including this paragraph in all subcontracts that process, manage, access or store NASA Electronic Information in support of the mission of the Agency.

(End of clause)

List of Attachments

GSFC Clauses Incorporated by Full Text

GSFC 52.211-101 List of Attachments. (NOV 2022)

The following documents are attached hereto and made a part of this contract:

Attachment	Description	Date	No. of Pages (including the cover page)
A	MTN Performance Work Statment (PWS)	TBP	TBP
B	MTN Objectives and Requirements	03/19/2026	39
C	Reserved	N/A	
D	Reserved	N/A	
E	IDIQ Fixed Price Labor Matrix	TBP	TBP
F	Data Requirements Deliverables (DRDs)	03/19/2026	118
G	Government Furnished Equipment (GFE) Listing	03/04/2026	11
H	CDRLS - Non-Technical DRDS	03/19/2026	16
I	Reserved	N/A	
J	IT Security Management Plan	TBS	TBS
K	Organizational Conflict of Interest (OCI) Avoidance Plan	TBP	TBP

TBS = To Be Submitted
TBP = To Be Proposed

*TBS within 30 days of the contract effective date

**TBS with proposal

***TBS within 30 days of contract award

(End of clause)

Representations, Certification, and other Statements of Offerors

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024
52.225-18	Place of Manufacture.	Aug 2018
52.240-90	Security Prohibitions and Exclusions Representation and Certifications	Nov 2025

FAR Clauses Incorporated by Full Text

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v) (2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.* (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) It _ will, _ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It _ does, _ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.* (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the

Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)
(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)
(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 Covered Telecommunications Equipment or Services-Representation. (OCT 2020)

(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) (1) *Representation.* The Offeror represents that it _ does, _ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it _ does, _ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.204-29 Federal Acquisition Supply Chain Security Act Orders—Representation and Disclosures. (DEC 2023)

(a) *Definitions.* As used in this provision, *Covered article, FASCSA order, Intelligence community, National security system, Reasonable inquiry, Sensitive compartmented information, Sensitive compartmented information system,* and *Source* have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(c) *Procedures*. (1) The Offeror shall search for the phrase "FASCSA order" in the System for

Award Management (SAM)(*https://www.sam.gov)* for any covered article, or any products or services produced o by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acq Supply Chain Security Act Orders—Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a

waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

52.204-90 Offeror Identification (NOV 2025)

If the Offeror will not have an active Federal Government contracts registration in the System for Award Management (https://www.sam.gov) when submitting its offer, it shall complete paragraphs (c) and (d) of this provision and include its responses with its offer.

(a) Definitions. As used in this provision—

Commercial and Government Entity (CAGE) code has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

Common parent means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

Taxpayer Identification Number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

Unique entity identifier (UEI) has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

(b) *Unique entity identifier (UEI).*

(1) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(2) If the Offeror does not have a UEI, it shall go to https://www.sam.gov to obtain one. The

Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI.

(c) *Taxpayer identification.* The Offeror shall provide with its offer the following information that is necessary to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and the implementing IRS regulations:

(1) Taxpayer identification number (TIN)

_ TIN: ______________;

_ TIN has been applied for; or

_ TIN is not required because:

_ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

_ Offeror is an agency or instrumentality of a foreign government; or

_ Offeror is an agency or instrumentality of the Federal Government.

(2) *Type of organization.*

_ Sole proprietorship;

_ Partnership;

_ Corporate entity (not tax-exempt);

_ Corporate entity (tax-exempt);

_ Government entity (Federal, State, or local);

_ Foreign government;

_ International organization per 26 CFR 1.6049-4; or

_ Other.

(3) *Common parent.*

_ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision; or

_ Name and TIN of common
parent: Name: __________
TIN: ________________

(4) The TIN provided in paragraph (c)(1) of this provision may be matched with IRS records to

verify the accuracy of the Offeror's TIN. The Government may use the TIN to collect and report on any delinquent amounts arising out of the Offeror's relationship with the Government (31 U.S.C. 7701(c)(3)).

(d) Commercial and Government Entity (CAGE) code.

(1) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its offer. The CAGE code shall be for that name and location address. Insert the word “CAGE” before the code. The Offeror may obtain a CAGE code as indicated in the following table.

If the Offeror is...	Then...
Located in the United States or its outlying areas	Submit a request to the DLA CAGE Branch via https://cage.dla.mil
Located outside of the United States and its outlying areas and its country is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation	Contact the appropriate National Codification Bureau (https://www.nato.int/structur/ac/135/about /contacts)
Located outside the United States and its outlying areas and its country is not a member of NATO or sponsored nation	Contact the NATO Support and Procurement Agency (NSPA) (https://eportal.nspa.nato.int /AC135Public/scage/CageList.aspx)

(2) The Offeror shall provide the CAGE code and legal business name (Do not use a “doing business as” name) for—

(i) Its immediate owner(s), if any;

(ii) Its highest-level owner, if any; and

(iii) Any predecessor(s), or predecessor of an Offeror’s predecessor, that held a Federal contract or grant within the last three years.

Owner Type	CAGE Code	Legal Business Name
Immediate owner		

Highest-level owner		
Predecessor*		

* Predecessor CAGE code may be marked "Unknown."

(3) If the Offeror has more than one immediate owner (such as a joint venture), give the information for each owner (or joint venture participant). If the Offeror has more than one predecessor, provide information for each predecessor in reverse chronological order.

(End of provision)

52.209-12 Certification Regarding Tax Matters (OCT 2020)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

(b) If the Offeror is proposing a total contract price that will exceed $5.5 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it

(1) Has _ filed all Federal tax returns required during the three years preceding the certification;

(2) Has not _ been convicted of a criminal offense under the Internal Revenue Code of 1986; and

(3) Has not _, more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of provision)

Instrs., Conds., and Notices to Offerors

FAR Clauses Incorporated by Reference

Number	Title	Effective Date
52.204-7	System for Award Management.	Nov 2024
52.227-15	Representation of Limited Rights Data and Restricted Computer Software	Dec 2007

Additional Regulation or Supplement Clauses Incorporated by Reference

Number	Title	Effective Date
1852.214-70 Deviation	Caution to Offerors Furnishing Descriptive Literature Deviation	Dec 2025
1852.233-70 Deviation	Protests to NASA Deviation	Sep 2025

FAR Clauses Incorporated by Full Text

52.232-31 Invitation to Propose Financing Terms. (DEC 2022)

(a) The offeror is invited to propose terms under which the Government shall make contract financing payments during contract performance. The financing terms proposed by the offeror shall be a factor in the evaluation of the offeror's proposal. The financing terms of the successful offeror and the clause, Terms for Financing of Purchases of Commercial Products and Commercial Services, at Federal Acquisition Regulation (FAR) 52.232-29, shall be incorporated in any resulting contract.

(b) The offeror agrees that in the event of any conflict between the terms proposed by the offeror and the terms in the clause at FAR 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services, the terms of the clause at FAR 52.232-29 shall govern.

(c) Because of statutory limitations (10 U.S.C. 3805and 41 U.S.C. 4505), the offeror's proposed financing shall not be acceptable if it does not conform to the following limitations:

(1) Delivery payments shall be made only for supplies delivered and accepted, or services rendered and accepted in accordance with the payment terms of this contract;

(2) Contract financing payments shall not exceed 15 percent of the contract price in advance of any performance of work under the contract;

(3) The terms and conditions of the contract financing must be appropriate or customary in the commercial marketplace; and

(4) The terms and conditions of the contract financing must be in the best interests of the United States.

(d) The offeror's proposal of financing terms shall include the following:

(1) The proposed contractual language describing the contract financing (see FAR 32.202-2 for appropriate definitions of types of payments); and

(2) A listing of the earliest date and greatest amount at which each contract financing payment may be payable and the amount of each delivery payment. Any resulting contract shall provide that no contract financing payment shall be made at any earlier date or in a greater amount than shown in the offeror's listing.

(e) The offeror's proposed prices and financing terms shall be evaluated to determine the cost to the United States of the proposal using the interest rate and delivery schedule specified elsewhere in this solicitation.

(End of provision)

52.233-2 Service of Protest (NOV 2025) (Deviation)

(a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.
(b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

For Federal Acquisition Regulation (FAR) provisions, see https://www.acquisition.gov/browse/index/far

For NASA FAR Supplement (NFS) provisions, see http://www.hq.nasa.gov/office/procurement/regs/NFS.pdf

(End of provision)

NFS Clauses Incorporated by Full Text

1852.245-80 Government Property Management Information (DEC 2025) (Deviation)

(a) The offeror must identify the industry leading or voluntary consensus standards, and/or the industry leading practices, that it intends to employ for the management of Government property under any contract awarded from this solicitation.

(b) The offeror must provide the date of its last Government property control system analysis along with its overall status, a summary of findings and recommendations, the status of any recommended corrective actions, the name of the Government activity that performed the analysis, and the latest available contact information for that activity.

(c) The offeror must identify any property it intends to use in performance of this contract from the list of available Government property in the provision at 1852.245–81, List of Available Government Property.

(d) The offeror must identify all Government property in its possession, provided under other Government contracts that it intends to use in the performance of this contract. The offeror must also identify: The contract that provided the property, the responsible Contracting Officer, the dates during which the property will be available for use (including the first, last, and all intervening months), and, for any property that will be used concurrently in performing two or more contracts, the amounts of the respective uses in sufficient detail to support prorating the rent, the amount of rent that would otherwise be charged in accordance with FAR 52.245– 9, Use and Charges (June 2007), and the contact information for the responsible Government Contracting Officer. The offeror must provide proof that such use was authorized by the responsible Contracting Officer.

(e) The offeror must disclose cost accounting practices that allow for direct charging of commercially available equipment, when commercially available equipment is to be used in performance of the contract and the equipment is not a deliverable.

(f) The offeror must identify, in list form, any equipment that it intends to acquire and directly charge to the Government under this contract. The list must include a description, manufacturer, model number (when available), quantity required, and estimated unit cost. Equipment approved as part of the award need not be requested under NFS clause 1852.245-70.

(g) The offeror must disclose its intention to acquire any parts, supplies, materials or equipment, to fabricate an item of equipment for use under any contract resulting from this solicitation when that item of equipment—

Will be titled to the government under the provisions of the contract; is not included as a contract deliverable; and the Contractor intends to charge the costs of materials directly to the contract. The disclosure must identify the end item or system and must include all descriptive information, identification numbers (when available), quantities required and estimated costs.

(h) Existing Government property may be reviewed at the following locations, dates, and times:

Included in Attachment G - Government Furnished Equipment (GFE).

(End of provision)

1852.245-81 List of Available Government Property (DEC 2025)(Deviation)

(a) The Government will make the following Government property available for use in performance of the contract resulting from this solicitation, on a no-charge- for-use basis in accordance with FAR

52.245–1, Government Property, included in this solicitation. The offeror must notify the Government, as part of its

proposal, of its intention to use or not use the property.

(b) The Government will make the following Government property available for use in performance of the contract resulting from this solicitation, on a no-charge-for- use basis in accordance with FAR 52.245–2, Government Property Installation Operation Services, as included in this solicitation. The offeror must notify the Government of its intention to use or not use the property.

(c) The selected Contractor will be responsible for costs associated with transportation, and installation of the property listed in this provision.

(End of provision)

Evaluation Factors for Award

FAR Clauses Incorporated by Full Text

52.217-5 Evaluation of Options (NOV 2025) (Deviation)

Except when it is determined in accordance with FAR 17.202(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)